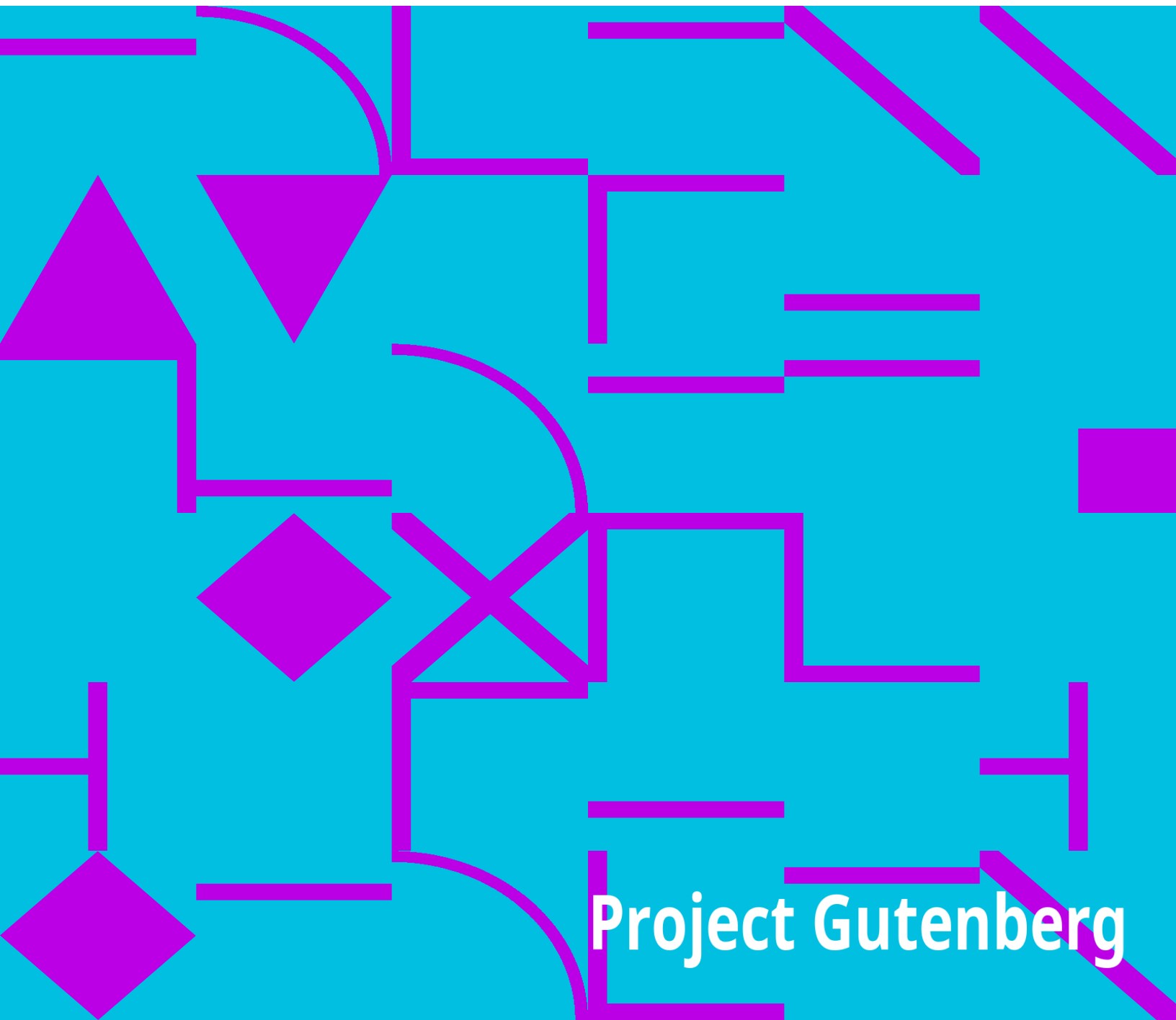


# Dilemmas of Pride, (Vol 3 of 3)

Mrs. Loudon

The background of the lower half of the image is a solid cyan color. Overlaid on this is a complex, abstract pattern of magenta lines and shapes. The pattern includes various geometric elements: straight lines of different lengths and orientations, right angles, curved lines forming arcs, and solid shapes such as triangles, diamonds, and squares. Some lines intersect to form an 'X' shape. The overall effect is a modern, geometric design.

Project Gutenberg

# Dilemmas of Pride, (Vol 3 of 3)

Mrs. Loudon

An abstract geometric pattern consisting of various shapes and lines in a vibrant magenta color, set against a solid cyan background. The pattern includes straight lines of varying lengths, right angles, and curved segments, creating a complex, maze-like visual effect. Some shapes resemble stylized letters or symbols, such as a large 'X' and a 'T'.

Project Gutenberg

## **The Project Gutenberg eBook of Dilemmas of Pride, (Vol 3 of 3)**

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Dilemmas of Pride, (Vol 3 of 3)

Author: Mrs. Loudon

Release date: January 24, 2011 [eBook #35058]

Language: English

Other information and formats: [www.gutenberg.org/ebooks/35058](http://www.gutenberg.org/ebooks/35058)

Credits: Produced by Heather Clark, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

\*\*\* START OF THE PROJECT GUTENBERG EBOOK DILEMMAS OF PRIDE, (VOL 3 OF 3) \*\*\*

# **DILEMMAS OF PRIDE.**

**BY MARGRACIA LOUDON**

**THE AUTHOR OF FIRST LOVE.**

**IN THREE VOLUMES.**

**VOL. III.**

**LONDON:**

**BULL AND CHURTON, HOLLES STREET.**

**1833.**

---

# CONTENTS

[CHAPTER I.](#)  
[CHAPTER II.](#)  
[CHAPTER III.](#)  
[CHAPTER IV.](#)  
[CHAPTER V.](#)  
[CHAPTER VI.](#)  
[CHAPTER VII.](#)  
[CHAPTER VIII.](#)  
[CHAPTER IX.](#)  
[CHAPTER X.](#)  
[CHAPTER XI.](#)  
[CHAPTER XII.](#)  
[CHAPTER XIII.](#)  
[CHAPTER XIV.](#)  
[CHAPTER XV.](#)  
[CHAPTER XVI.](#)  
[CHAPTER XVII.](#)  
[CHAPTER XVIII.](#)  
[CHAPTER XIX.](#)  
[CHAPTER XX.](#)  
[CHAPTER XXI.](#)  
[CHAPTER XXII.](#)  
[CHAPTER XXIII.](#)  
[CHAPTER XXIV.](#)

---

# **DILEMMAS OF PRIDE.**

---

## CHAPTER I.

We shall here pause for a few moments to give a slight sketch of the principal agent employed by Geoffery in this part of the business, and indeed in the conduct of the whole affair.

In Arden, the neighbouring county town, there lived a solicitor, who, unfortunately for the honour of humanity and his own especial calling, was without exception, the most thorough-paced villain unchanged; nay, many have been hanged who were not half as bad; for this man was not only without remorse of conscience, but also without remorse of heart. His only reason for committing more robberies than murders was, that the former crime was in general more profitable than the latter; but as to who died the lingering death of a broken heart, he cared not, so long as he gained a few pounds by the transaction.

He was known for a mean contemptible fellow, and consequently possessed but little of the confidence of the higher orders, so that when he could catch a gentleman to plunder, it was a sort of prize in the lottery to him; but unfortunate tradesmen in a little way, were his natural prey: to such, when perishing in the gulf of misery, he pretended to stretch a helping hand, but with that very hand assisted in the work of destruction, and finally possessed himself of the wreck of their fortunes. This fellow, by name Fips, had long been Geoffery Arden's right-hand man, and for all his services had invariably been one way or other payed out of Sir Willoughby's pocket. Such was the fitting coadjutor to whom Geoffery applied for that assistance which the present momentous occasion demanded, as the following interview will show without absolutely committing himself.

Fips, who had just dined, was seated in an old-fashioned black-bottomed mahogany arm-chair, which he filled, or rather over-filled, in much the same manner as a feather-bed tucked into the same piece of furniture would have done; and had there been a cord tied round the centre of the said bed as a convenient mode of carriage, it would have bisected its yielding

rotundity, just as the single middle button of Mr. Fips's waistcoat did that of the wearer.

With a hand so fat that it could scarcely grasp the decanter, yet trembling from habitual excess, Fips was helping himself to the last glass of the bottle of port with which he had followed up liberal potations of brandy and water, not water and brandy, swallowed during dinner; while the flabby cheeks, double chin, and bottle-nose of the sot, his health being none of the best, partook more of the purple hue than of the lively living red. Beside him sat his only daughter and sole domestic companion, Miss Fips. She was about six-and-twenty, and but for the showy vulgarity of her dress, the unshrinking boldness of her demeanour, and the rouge with which she unnecessarily heightened her complexion, she would have been extremely handsome, her figure being well made and showy, though on rather a large scale; her hair redundant, black, and glossy, and dressed in numberless gigantic bows, which sat *à merveille*, the tresses of which they were formed being strong in texture as a horse's mane; her eyes were large, dark and bold; her features regular—lips full—teeth large but good—and skin, though coarse, of a snowy white.

"Ha, Fips, how are ye?" said Geoffery entering. He next made his salutations to the lady, with a marked effort of gallantry in his manner.—"So you have been making merry alone, I see, old fellow," he added, turning again to Fips; "and I am just come in time for the empty bottle."

"Never mind, we'll have it changed for a full one. Come, sit ye down. Deb, go send us in a bottle of claret. Strange news afloat, Mr. Arden!" he added, as Deborah disappeared.

"Stranger perhaps than you imagine, Fips," replied Geoffery with well affected solemnity. "Indeed, the only conclusion at which it is possible to arrive, after an impartial review of the circumstances," he pursued, lowering his voice, "is too horrible to be thought of. For myself, I am as you will allow very painfully situated. If a '*most foul and unnatural murder*' has been committed, it would be dastardly and contemptible in me, the nearest in blood, to suffer the murderer to escape, merely from a want of activity and decision in seeking out and bringing together sufficient evidence. Yet on the other hand, should my cousin, as I *sincerely* hope he may, prove innocent, it

might appear invidious in me, the next heir, to have evinced what, though but a respect for justice, might be misconstrued into a too great willingness to find him guilty." Here the entrance of the claret and the consequent discussion of its merits for a time interrupted the conversation.

"The object of my visit," said Geoffery, when the wine had been pronounced excellent, "is to crave once more that which I have so often before found useful—your friendly advice and assistance. What in fact I at present stand most in need of, is a friend whose disinterested exertions should ensure the ends of justice being answered, without my appearing to take an active part in this truly shocking affair."

"Humph," said Fips, who by all this as perfectly understood as though it had been said in as many words, that the secret service required of him, and for which, if successful, he should no doubt be munificently rewarded, was to hang Sir Alfred Arden, whether innocent or guilty; and by so doing, give Geoffery, who was the inevitable heir, by a strict male entail, possession of the title and estates.

Geoffery proceeded to give Fips an account of the circumstances connected with the melancholy event, in a manner ingeniously calculated to exhibit those features of the case most susceptible of exaggeration or misrepresentation; he also recapitulated his own examination of the several servants, thus giving Fips an opportunity of judging what witnesses might, if necessary, be found most available.

"For that matter," he added, "if you could find an opportunity yourself of conversing with these people, it might be desirable; you would understand the subject more fully."

Something was next said of the impropriety of suffering the public mind, and, through so all-pervading a medium, future judges and juries to be *prejudiced* by the *general high* character and seeming amiability of Sir Alfred, for such qualities were no palliation of the crime, if indeed, as he feared there could be no doubt, it had been committed.

There was another point of infinite importance, which was, that the business should not be allowed to pass over without any investigation, as might be the case, if, for one reason or other, every one thought it necessary to be

supine. He would himself be glad, if possible, to avoid taking an active part, yet something must be done; he should never forgive himself if the time for investigation were allowed to pass by, and the waves of oblivion to close over so shocking a transaction. While, on the other hand, if Sir Alfred were perfectly innocent, which, notwithstanding appearances, he should still be too happy to find the case, it would be the most cruel injustice to him, not to wipe out this foul stain from his reputation by a full and fair inquiry. He would have little reason to thank the friends, who, from false delicacy, had suffered the proper occasion for so doing to pass over. At the same time it was very desirable that the necessary steps should be taken with the greatest possible delicacy; no one should appear to entertain a suspicion until the force of evidence should compel conviction.

"This is the line of conduct," continued Geoffery, "which I mean to observe with Sir Alfred, who, I know, has himself at present no apprehension that any suspicions are afloat. He gives out, it seems, and expects the public to believe, that his brother died of a fit of apoplexy. The Doctor, it is true, did allow that the symptoms were such as might have attended a sudden seizure of the kind."

To keep his unsuspecting kinsman as long as possible in the dark by this pretended delicacy, was, as we have said, a part of Geoffery's hellish plot. He had contrived, under the mask of sympathy, to put a few important questions to Alfred, and the answers to these had been such, as very materially to increase his hopes of ultimate success. But he knew that if Alfred were informed that such a surmise, as that of his having wilfully murdered his poor brother, had found a place in the mind of any being upon earth, he would of course immediately come forward, and court the fullest investigation. And though it did not follow that even this must clear him, his avoiding inquiry, as Geoffery knew he would continue to do, while under his present impression, would furnish, when connected with the circumstances that must come out in evidence, a strong presumption of guilt.

"Humph! humph!" uttered from time to time with the intonation of a fat pig wallowing in mud, had been the cautious comment of the sagacious Mr. Fips, during this lengthened tirade, except indeed that an involuntary exclamation of "No! That's good!" had broken from him on the mention of

the piece of paper marked "*Poison*" having fallen from within the breast of Sir Alfred's waistcoat, and again, "That's better still," accompanied by a resounding stroke of his clenched hand on the table, when Geoffery came to his having himself seen the missing packet of arsenic in Sir Alfred's escritoire.

"I am always happy to oblige you, Mr. Arden," at length commenced Mr. Fips; "but after all, this is a kind of thing which cannot be said to be much in the way of my business; without, indeed, it could be contrived that I was to be attorney for the prosecution; for that there will be a prosecution there can be no doubt from what you tell me. I had heard all before, certainly in the way of report, but I had no idea it could be at all true;—I had no notion you had so good a case."

Geoffery undertook to arrange that Fips should be the attorney employed. "You have often, Fips," he continued, "conducted business for me in the most liberal and friendly manner, when it was not in my power to remunerate your services as they merited; should I however have the misfortune—for misfortune I must call it, taking all the circumstances into consideration—to succeed to the Arden estates on the *present* occasion, to repay amply all your past *disinterested* friendship shall be my first care. You shall not only have the agency, which is no trifle, but a handsome annuity beside; and that not only for your own life, but also secured to your daughter; unless indeed, means can be devised," he added, smiling, "of identifying her interest with those of the owner of the estates themselves. I have hitherto been deterred," he added with an affectation of great candour, "from mentioning this subject by my poverty, and consequent inability to marry; but my admiration of Miss Fips, I think you must have seen."

Fips was of course profuse in his thanks for the intended honour; not that he felt unbounded confidence in the sincerity of the *soi-disant* lover, of whose pride and ambition he was perfectly aware: he did not however despair, considering the present aspect of affairs of having his client in a short time so completely in his power, as to be able to enforce the fulfilment of any hopes which the latter might at present think it good policy to hold out. And having now a sufficient "spur" of self-interest "to prick the sides of his intent," he entered into the business in good earnest, took down notes of

hints to be followed up, reports to be circulated, persons to be called upon, and especially an embassy of a most delicate nature to the coroner.

That functionary was to be requested on the part of Mr. Geoffery Arden, to make use of the information which he felt it his imperative duty to convey to him, without noticing Mr. Arden's interference, in consideration of the very painful situation in which the latter found himself placed; and in short, come forward in his official capacity as feeling himself called upon so to do, by the nature of the reports which had gone abroad. After this preamble, Mr. Fips was to inform the coroner at length of every suspicious circumstance; to indicate to him where the missing paper of arsenic was to be found; and to request that he would require the attendance of the medical gentlemen, and enforce the opening of the body, which had hitherto been resisted. All this was followed up with hypocritical declarations, that as nothing short of the most positive proofs could induce Mr. Geoffery Arden to believe his cousin guilty, he could not, though feeling investigation a duty, endure the idea of standing forward his accuser, while there remained a possibility of his being proved innocent.

Each time Fips had occasion to speak, whether in question or reply, while thus receiving his instructions, he would commit some seeming inadvertency of expression, almost removing the flimsy veil from the nature of the services required of him; and whenever he did this, he would look full in Geoffery's face. But that wary tactician as often dropped his eyelids, and replied, with hypocritical calmness, in the same key of caution in which he had commenced.

At length Fips pronounced it time for him to go out; and by the third effort, succeeding in disengaging himself from his arm-chair; then, with some difficulty bringing together the lower buttons and button-holes of his waistcoat, which, while in a sitting position, gaped full half a yard asunder, he departed, telling Geoffery, he might if he pleased, now that he had talked business with him over a glass of wine, take the opportunity of the hour or two he should be absent, to talk love to his daughter, over a cup of tea.

---

## CHAPTER II.

As Colonel Trump says, "There is nothing forbidding to any man, about a fine woman." Geoffery, therefore, now that he had placed more serious concerns in such excellent hands, had no objection to the recreation of a *tête-a-tête* on the footing of a received lover, with a young woman, whose personal attractions were above mediocrity, and whose modesty was not likely to be troublesome; while from her inferiority of station, her ideas of the high honour conferred on her by the gentleman's addresses were calculated to smooth the way to advances, which an equal might have thought impertinent, or at least premature.

When, therefore, Mr. Fips returned, after an absence of full two hours, he found the candle-wicks ominously long, and neither the tea-things nor the lover sent away.

Yet Geoffery had not the most distant thought of making Miss Fips his wife; unless, indeed, circumstances compelled him so entirely to commit himself to Mr. Fips, as to be completely in his power, and so make it a matter of prudence to secure his secrecy, by what, with too many, is the only infallible bond of good faith, identity of interest. But, if on the other hand, he should be so fortunate as not to be obliged to make use of Fips, more than as a tool, with which to work up the material in the way of extraordinary combinations of circumstances that fate seemed so liberally to have provided; and that, by the operation of those so worked, he should succeed in obtaining what had so long been the object, though for many years back the hopeless one, of his ambition—the Arden estates, Fips having nothing more to bring against him than surmises that the acquisition was not disagreeable to him—he should set at nought the tears of Miss Fips, and merely keep Fips's tongue at bay, with the agency *at will*: and as that was a thing which some one must have, it was an excellent way of securing the fellow's services first, and even his good behaviour afterwards, on very reasonable terms. For the present, however, while all was yet at stake; while there was no saying what villany might be necessary to carry him through;

it was highly politic, to give Fips, at the outset, a motive, which would make him ready to perform any service that might be required of him.

Geoffery's calculations were perfectly just: Fips had indeed been indefatigable; and, during the two hours he had been out, had not only performed his delicate mission to the coroner, with consummate skill; but had contrived to drop in at innumerable houses, and, on pretext of asking the news, to give circulation to many evil reports and wicked surmises. He gossiped away, in particular, about there having existed but little cordiality between the brothers of late, in consequence of an unfortunate rivalry; in which, too, he said it must be confessed that Sir Alfred was very ill-treated. And the lady was an heiress too; so that Sir Alfred being a younger brother, the match was a great object to him. He had been accepted, in fact (the lawyer declared that he had it on the best authority), when Sir Willoughby, most ungenerously interfered, and by the strength of his purse, carried off the prize.

---

## CHAPTER III.

In consequence of the message of Geoffery, as conveyed by his unprincipled tool, Mr. Fips, together with the reports already in circulation, the coroner felt it his duty to visit Arden in his official capacity.

Alfred had hitherto, as we have stated, indulged his mournful feelings, by remaining entirely secluded.

He had given the necessary orders for the funeral, on that scale of magnificence, which the rank, but still more the immense fortune of the deceased called for; and was beginning to flatter himself, that his endeavours to prevent the idea of a suicide becoming prevalent had been successful, and that there would be no unpleasant interference.

On being apprized, however, of the arrival of the coroner, he again felt some uneasiness on this head.

He knew that the suspicion he had himself so long entertained, of Willoughby's liability to derangement, had been ever buried in his own bosom. He even knew, strange as it may seem that such should be the privilege granted to affection, that his brother, though he loved him better than any one else in the world, had never been half so odd and inconsistent in temper, towards any one, as towards himself; and still more, that even latterly, since the actual presence of derangement had to Alfred been clearly evident, yet, from the turn it had taken, of seemingly exuberant spirits, it had been apparent only to the anxious, watchful, constant companion, which was himself; and was not of a nature to be seen through by the careless apprehensions of servants, during merely casual attendance; but, on the contrary, was rather calculated to convey to them the idea that their master enjoyed more than his usual health and spirits. Altogether, then, it rested on his own single, unsupported evidence, to prove that his brother had been deranged, and was therefore entitled to Christian burial. He was probably not aware, how much the admission of insanity in those cases, is, in general, matter of form. And little did he think, that it was his own life and reputation which were at stake, and that the preservation of the one, and

the restoration of the other, rested also on his own single, unsupported evidence: nay, that every thing he had ever generously or kindly done, to hide the infirmities, or spare the feelings of others, would now be ranged in evidence against himself.

The coroner, in consequence of the secret information with which he had been supplied, came provided with a warrant to search for the missing packet of poison. His first step was, to demand Sir Alfred's keys; his next, a request to be shown Sir Alfred's escritoire; on opening which, he drew forth, to the evident horror of all present, the paper of arsenic. He held it on the open palm of his extended hand, for some moments; looking round, as he did so, with a countenance of great solemnity, and, to do him justice, of sorrow. Then, delivering the packet into safe keeping, he proceeded, by virtue of his official authority, to require that the body of the deceased should be opened.

So slow was Alfred in suspecting the truth, that he still believed the coroner's sole view was to ascertain whether or not his brother had put a period to his own existence. He was, however, now obliged to submit to the required examination, the result of which was, a unanimous opinion on the part of the medical men present, that Sir Willoughby had died from the effects of poison, probably arsenic, but that this point might be placed beyond a doubt, the contents of the stomach were reserved to be subjected to the proper tests.

The coroner then holding his inquest in the very library in which the melancholy event had taken place, the servants, and all persons connected or supposed to be connected with the affair were severally examined. Doctor Harman, on being required so to do, produced the fatal scrap of paper which he had seen fall from within the breast of Sir Alfred's waistcoat, and the actual arsenic which, by the test of reduction he had obtained from the sediment in the glass that Sir Alfred had attempted to rinse in his presence. The packet of arsenic was examined: it was perceived that a portion of its outer envelope had been torn away, the torn part was compared with the piece so seen to fall from the breast of Sir Alfred. The fitting together of every irregularity of the sundered portions, the texture of the material, the peculiar characters, being those of print yet done with a pen, in which the two words, "*Arsenic, Poison*," were distinctly legible, the

one on the one part, the other on the other, all clearly proved the smaller piece of paper to have once been a part of that which still contained the arsenic. The answers of the persons examined then went on to prove the various facts of the glasses having been wiped the moment before they were brought in—of the impossibility from the situation of the arsenic, of any portion of it having fallen accidentally into either of them—of Sir Alfred having been seen in the afternoon coming from the saddle-room alone—of his previous knowledge where the arsenic lay—of the brothers having supped together, and no third person having entered the room from the time the tray had been carried in, till the alarm had been given by Sir Alfred, and Sir Willoughby found in the agonies of death—of the order for antidotes—the attempt to rinse the glass, &c. &c. &c.—and, finally, of Sir Alfred's having since refused to allow the body to be opened.

Although it was easily evident to all, but Sir Alfred himself, that the tendency of this examination was to prove him the wilful murderer of his brother, so remote was the apprehension of such a suspicion from his pure, exalted, and preoccupied thoughts, that he was long, indeed, in comprehending the nature of the proceedings. When, however, it became no longer possible to avoid drawing from all that was passing, the too evident conclusion to which every question and reply directly led, his horror was little short of that with which he would have contemplated the actual commission of the crime, had some fiend possessed the power of requiring of him such a service.

We shall not make any attempt to describe the outraged feelings of our hero on this afflicting occasion; but simply state the result of the proceedings, which was, that the coroner felt it his painful duty to commit Sir Alfred.

---

## CHAPTER IV.

The committal of Sir Alfred Arden for the murder of his twin brother occupied, of course, the attention of the whole country, and became for a time, almost the sole topic of conversation. The very enormity of the crime would, with many, have been a sufficient reason for disbelieving the guilt of the accused; particularly when his amiable temper, gentle manners, and honourable character were taken into consideration; but the malignity which was layed at the root of the story at its earliest promulgation, accompanied the ramifications of report in every direction. Surmises were ingeniously mingled with facts; motives confidently attributed to the simplest and most innocent actions, as well as to those which unfortunately had a suspicious appearance; and ready-made opinions, prejudging the case, were artfully scattered abroad, to be picked up by the many who wanted the power or the habit of thinking for themselves.

Thus, though the personal friends of our hero flocked around him, offering him their utmost support, and refusing to give credit to any allegations derogatory to his honour, still among the indifferent and the slightly acquainted, an almost universal cry of consternation and horror was got up. People moralized about the temptation of great riches, quoted scripture to the same effect, but said the passage ought to have been translated, "It is easier for a camel to go through the eye of a needle than for a *man who covets* riches to enter into the kingdom of God." Others, in a more sentimental strain, spoke of the parties being not only brothers, but twin brothers; and dwelt upon the great affection Sir Willoughby had always shown to Sir Alfred! recounted every exaggerated particular of the rivalry; descanted on jealousy, and repeated from history, ancient and modern, numberless instances of crimes of the blackest die, of which that passion, from the commencement of the world to the present day, had been the fruitful source.

Here the report of Sir Alfred having been very ill-treated in the business, had its effect; and was adduced, though not, of course, in extenuation of

such a crime; yet, as accounting for it on principles which experience acknowledged.

What passion so savage as revenge; what revenge so dire as that which is born of jealousy!

Mr. Fips, as a perfectly disinterested person, had, on one pretext or other, contrived to have some conversation with most of Sir Willoughby's servants, and in the course of such conversation, to insinuate the suggestions, and induce the replies, that best suited his purpose; while with long words, long faces, and terrific-sounding technicalities, he managed to arouse their selfish fears, to a degree which banished all better feelings. Then he would shake his head, and allowing his double chin to hang with hypocritical despondency, most devoutly hope that poor Sir Alfred might be found innocent. "In that case," he would add, "it will go hard with some of you, for the poison did not get into the glass without hands; and more likely, I say, to be by any other hands, than those of his own brother." By arts like these, instead of the affectionate respect for our hero, the indignant rejection of the idea of its being possible that he could have committed such a crime, which had else been the spontaneous sentiments of all the household, some were unconsciously rendered almost willing to hear their once beloved young master proved guilty, as the only means of clearing and saving themselves. Such thoughts, however, naturally produced an inward discontent, that, in its turn, gave to their outward demeanour a sullenness and gloom, which had a most baneful effect on the judgments of all with whom they came in contact; for it seemed to those who knew not how it had been produced, to indicate a secret conviction of the guilt of their master.

A thousand times each day was the butler asked by some one of the party assembled in the housekeeper's room at Arden, if he were sure the glasses were quite clean when he took them into the library. Of course he always declared they were, on which, another of the conclave, in a stage whisper, and with a face of mystery, would follow it up, by saying,

"Well, and from that, till we were all called in to see him in the agonies of death, there was no one near the room but their two selves."

"And wasn't the sediment the Doctor found in the bottom of the glass, arsenic?" observed a third.

"And didn't he offer to rinse the glass?" a fourth would ask; "and what could that be for?"

"And so fond of one another as they used to be when they were boys!" ejaculated a fifth.

"It's never been for the estate," said one of the women, and the rest of the female committee agreed with her, that it was owing to both brothers fixing their fancy on the same lady, and that Sir Alfred, that was the handsomest gentleman of the two by far, could not abide being turned off for him that had the fortune. There was many a young man, they observed, that had been the death of the girl that he was fond of, sooner than she should leave him, to go with another.

"And to give it to him at supper-time, too," said the gardener, who was a great politician, "thinking it would be put into the newspaper 'found dead in his bed,' and so hear no more of it."

The old butler could not endure all this, and was so irritated by it, that he would have quitted the house, but that Lady Arden was expected. Poor Lewin, who had long been failing, was overwhelmed by the blow; he became almost childish, at least quite lost his memory, for though he wept incessantly, he scarcely seemed to know why—sometimes speaking of Sir Willoughby as still alive, and sometimes of both brothers as already dead. While at other times, he would attempt to play on the harp, as though nothing had happened, and seem to think it a great hardship, when, from respect to decorum, he was checked by the other servants.

Whenever this occurred, he would sit for hours sounding, one by one, single strings, as if by stealth, with the silent tears of wounded vanity rolling down his cheeks, fancying, poor old man, that it was his music that was despised.

Thus, ever ready to poison joy, or add bitterness to grief, *Pride*, that arch enemy of our peace, still survives, when the mind is else a wreck.

*Pride* is surely that evil spirit portrayed in scripture as "wandering to and fro, seeking whom he may devour;" that is, whom he may make wicked—whom he may make miserable; deceiving even the generous of heart, by exalting them in their own opinion, till their *pride* requires of others a

homage which the *pride* of others will not yield; and so, resenting the supposed deficiency, they cease to be in charity with all men.

---

## CHAPTER V.

Lady Arden was in town, and busied in preparations for the marriage of Madeline, when Alfred's letter, announcing the sudden death of Sir Willoughby, reached her. The signs and trappings of approaching festivity were, of course, changed for those of mourning. But who shall describe the consternation of this affectionate mother, when the astounding intelligence was brought to her, that her child, her darling, her favourite, now her only son, was actually committed to a felon's prison, accused of the murder of his brother.

It was some moments before her comprehension could grasp the whole extent of the horrors connected with such an intimation. She was bewildered, she seemed to be in a trance; yet, through it all, her own perfect knowledge of the utter impossibility of such an accusation having the slightest foundation in truth, was a kind of upholding to her spirit, inasmuch as it appeared also impossible to her mind, that any being could give reception to such a thought. Unable to speak connectedly, she alternated the expressions, "No, no——Oh no," continually, while looking round her with a strange wild eye, that seemed to flash, yet saw not.

The want she felt was to be with her son; but though she moved rapidly, and often turned quite round, she was incapable, at the time, of distinguishing the door from the windows of the apartment she was in.

It was only by the kind intervention of Mrs. Dorothea, that Lady Arden's wishes were at length understood, and accomplished.

Mrs. Dorothea was in town for the purpose of being present at Madeline's wedding; which was so far fortunate, as she was, on the present occasion, a great support to her afflicted sister-in-law; and kindly accompanied her on her journey to Arden.

On entering the town. Lady Arden was asked where she would choose to go. "Where?" she repeated, "Take me where he is."

She was driven to the gates of the gaol; she looked at them, and at Mrs. Dorothea.

When last she had passed through the streets of Arden, the triumphal arches and laurel wreaths, the remnants of the previous day's rejoicings, for the coming of age of her twin sons, were not yet taken down.—Now, one son lay a quarter of a mile distant, within the stately mansion of his fathers, a yet unburied corse;—she waited at the door of a common prison for admittance to the other.

Mrs. Dorothea's eyes met hers, but neither spoke. Becoming suddenly collected, Lady Arden alighted from the carriage with a firm step, and entered the dismal precincts as proudly as though the portals of a palace had received her.

Alfred had been warned of her approach. He stood breathless, and with a beating heart. Without a word uttered on either side, they rushed into each other's arms. In continued silence the mother held the son to her bosom, as though she felt, instinctively, that it was his natural sanctuary.

Though at first melted by the tenderest sorrow, in the embraces of his parent, our hero soon assumed a noble firmness. He had already passed eight-and-forty hours in solitary reflection on his extraordinary fate.

"I do not ask you, mother," he said, "not weep, for we have a common cause of sorrow in the untimely and sudden death of my poor brother: but add not one tear for me; believe me, there is not, there cannot be, a shadow of danger in the position in which I stand; although public opinion, I am told, is against me. Is it not," he added, in an altered tone, "a degrading view of human nature, to see that so many individuals should be found ready to believe such a crime possible? As to the result of a fair and open trial, however, I repeat it, I have no fears!

"In a land professing to prefer mercy before judgment; in a land with laws so constituted, that lest an error should be committed on the side of severity, the criminal, whom all know to be guilty, is allowed to escape unpunished, if but a technicality of legal proof be wanting; in a land, one of the boasts of which is, that no man is required to prove his own innocence, but that all are by law innocent until proved guilty; in such a land it must be quite

impossible that, on mere appearances, they should strip of honour and of life one whose thoughts were never visited by the conception of a crime! Nay, I speak it not in unchristian pride, but, compared with that of which they would accuse me, I feel that I am innocent indeed!"

After a long pause, during which they had gazed silently in each other's faces, Alfred, as a sort of effort to converse, said, "How much we are struck with the merest common-places, when they happen to suit our own individual case: 'innocent as the babe unborn,' now seems to me a beautiful expression."

Lady Arden felt much comforted by the firmness of her son;—his views were her own; though within the walls of a prison, and surrounded with every practical proof of the peril in which he stood, she could not look at Alfred, his lofty carriage, the nobleness of his brow, and force her imagination to associate with him the idea of a condemned criminal—it seemed a thing impossible! "No!" she haughtily exclaimed, "acquitted he must be, but how have they dared to accuse him?"

Alfred now explained the hitherto unexpressed fears, which he had so long entertained, respecting his brother's state of mind, and went into all the particulars of his late return to Arden, and subsequent death. As he drew up in array the extraordinary circumstances, inexplicable to any one but himself, on which the accusation against him was founded, Lady Arden felt a pang of terror paralyse her heart, but as his simple explanations followed, she would exclaim, "Is not that sufficient? Is not that sufficient?"

"In the mouth of an impartial witness, such explanations would be all-sufficient," he replied, "but remember I am the person accused."

"Accused!" she repeated, then gazed with a mother's rapturous love, on the guileless expression of his parted lip, as to comfort her he tried to smile, she fondly poured forth expressions of endearment.

"Alfred, my child! my mild, my innocent, my beautiful Alfred! my gentle, my affectionate, my noble Alfred!" She paused, and, by the working of her features, terrible thoughts seemed to pass in view before her.

"Oh, impossible!" she suddenly exclaimed, clasping him with convulsive agony to her breast, "quite impossible! But if they are so mad," she added,

in a hurried tone of subdued agony, "they shall saw these arms asunder before they take him from me!" He was too much affected to reply. Again she looked at him in silence for a time, then added, almost fiercely,

"There must be means, and I will find them! What! allow them to murder him! No—no—I rave, my son. Dreams of horror belong to these walls—but I have no fears—no fears—no fears—I say I have no fears—it is quite, quite impossible!" Even while reiterating that she had no fears, her voice had faltered, and now she burst into a passion of tears, which the effort to brave her feelings quickly changed to an hysterical affection.

This became so serious, and lasted so long, that she was obliged to be carried home, and conveyed to bed, where the kindhearted Mrs. Dorothea, took the post of friendship beside her pillow.

Yet this was, by no means, the most agonizing period of this season of trial. The situation was too novel to be comprehended in its full extent. There was, as yet, more of incredulous amazement, and of proud defiance of the accuser, than of despair or even of apprehension in the feelings both of Lady Arden and of Alfred. They were both at present more indignant that such an outrage had been offered, and that submission to insulting and degrading forms was still necessary, than seriously alarmed as to future consequences.

---

## CHAPTER VI.

In the parlour to which we have already been introduced, sat Mr. Fips—over his wine it must be confessed, yet apparently uniting the *utile et dulce*, for beside his bottle of port stood an ink-bottle; amid walnut-shells and remnants of biscuit lay sundry long-shaped folded papers, and though he held a glass in his hand, from which he sipped from time to time, there was a pen behind his ear; his wig was pushed on one side and Geoffery was his companion.

"Should we not subpœna Lady Arden?" asked Fips.

"By all means," replied Geoffery, "her evidence will be of great importance: we can prove by it, that Sir Alfred had actually made proposals to and been accepted by Lady Caroline, the very day before his brother came to town: and also, that he felt his disappointment much more bitterly than was generally supposed."

Here Geoffery repeated the particulars of a conversation on the subject, which it may be remembered he once overheard, between Lady Arden and her son. And Fips took down notes, for suggesting questions to counsel.

"Do you think," he said, "there would be any use in sending subpœnas to Lady Palliser and her daughter?"

"No, on the contrary, I have reason to suspect, some circumstances might come out on their examination, rather calculated to raise a doubt in the minds of jurors; I am therefore better pleased that they are on the continent."

"When did they go abroad?"

"A short time before the death of Sir Willoughby; immediately after his return to Arden."

"Are they likely to be brought forward on the other side, think you?"

"I should say not: from the conversations I have had with Sir Alfred, I should think that he was not at all aware that their evidence could be of the slightest service to him."

"You seem to have more reasons for thinking so, Mr. Arden," said Fips, "than you have been pleased to confide to me. Now 'tis well and wisely said, that a man, for his own sake, should have no secrets either from his doctor or his lawyer. That, however, is your look out; I can only serve you to the best of my ability, as far as my information goes."

"Which is quite as far as mine, I assure you Fips. It was merely my own surmise, that Sir Willoughby might not have been quite as well received latterly as his vanity had, at first, led him to believe he should be. Now, I naturally thought that such an idea being promulgated, might suggest the possibility of Sir Willoughby's having taken the poison himself; which idea, though not amounting to evidence on either side, might, as I said before, raise doubts in the minds of a jury, calculated to bias their judgments, and so defeat the ends of justice."

"I thought," observed Fips, sulkily, for he fancied he saw that Geoffery was playing an underhand game, "I understood you to have said, you had reasons for your opinion."

"Yes, so I have—those I have just stated."

He had others, however, which he had not stated, because, as we have said, he did not wish to put himself absolutely in Fips's power, unless there should be no other means of gaining his end.

"His sisters too," continued Geoffery, "and his aunt Mrs. Dorothea, can be produced to prove so far, that Sir Alfred, before the appearance of his brother on the stage, was an assiduous, and believed himself to be a favoured lover. I do not mean to say, that either this or Lady Arden's evidence would be any proof of Sir Alfred's guilt; but, by adding the incentives of jealousy and revenge to that of mere avarice, it makes his having committed the crime much less improbable, and must therefore influence, more or less, the minds of the jury."

When the various subjects under discussion were arranged and the bottle of port finished, Mr. Fips repaired to his office—for he was a labourer at his

vocation, late, as well as early—while Geoffery, whom the strains of a female voice, accompanied by a pianoforte, had been long inviting to the drawing-room, repaired thither.

Miss Fips, as the only child of Mr. Fips, was destined to be the receiver of stolen goods to a large amount; or, in other words, to inherit all the money her father had scraped together. She had therefore been sent to a London boarding-school, to receive an education proportionate to her fortune. Her Italian singing-master, called her voice a made one. He had found it impossible to give her either ear or taste; while the unshrinking audacity with which she caricatured a *bravura*, gave to her performance the semblance of having been got up on purpose for a burlesque: a stranger would seriously have thought, that the most polite thing they could do was to stand by and laugh openly. Her shakes were shudders, and seemed to have been produced by a sort of second-sight view of some approaching horror, invisible to all beside. Her prolonged notes resembled the howls of a chained dog, on a moonlight night; while her abrupt changes, and impassioned passages, were the starts and yells of a maniac.

Without somewhat of the grace of natural timidity, the most splendid performance could scarcely please; with what feeling then, but that of unqualified disgust, could such a display as we have just described have been witnessed; while Geoffery, who had the part of a lover not only of music, but of the lady to maintain, was thereby called upon to enact raptures.

Fips's wife had died, in giving birth to this only child. Fips was then a poor clerk. When the child began to require the aid of a first school, he lodged in a garret, and dined in a cellar, that he might be able to defray the expense. Yet, strange to say, notwithstanding this seeming noble self-denial, his was not a worthy nor a genuine affection; he was incapable of such. In the first place, he was naturally a man of parsimonious habits, and imbued with a prudent sense of the necessity of giving to persons unprovided for, at least an education, that they might be able to do something for themselves. The sentiment, however, which he mistook for affection, was little better than gratified vanity. The child happened to be very beautiful; to which his attention was particularly drawn, by the circumstance of his being often obliged, for want of mother or nurse-maid, to walk out with it himself.

When he did so, almost every one they met would turn to look or to make some comment as they passed. Sometimes, groups would stop and speak to the child; kiss it, ask it to shake hands, &c. On such occasions Fips would stop also, and becoming imboldened, desire his little girl to look up, and show its pretty eyes; to laugh, and show its pretty teeth; then, its pretty mouth, its rosy lips, its lovely colour, its beautiful skin, its pretty curls, its pretty foot, would each in succession form a topic for eulogy, till the poor child was hardened into little better than a hawked-about show while Fips, to whom his little girl, through the medium of gratified vanity, otherwise *pride*, thus became a source of pleasure, fancied himself a fond father. As the child grew, Fips having no principles himself could not impart any. Meanwhile, his fortunes also grew rapidly, not without suspicions that he had found out by-ways to the attainment of riches, which he would have been very sorry to have pointed out to a fellow-traveller. The possession of wealth, in the course of time, suggested the necessity for the fashionable finishing-school already mentioned.

The orders were given, that no pains or expense should be spared in making Miss Fips highly accomplished. These accomplishments, in all their various stages, became at each vacation the subjects of new displays; till at length the young lady came home the perfect singer of Italian bravuras, performance of which we have just witnessed; and furthermore imbued with a thorough contempt for her vulgar, and except in the chicanery of the law, ignorant father. Of this contempt she made no secret; but on the contrary, laughed at his opinions and scoffed at his authority, on the plea of being herself a much better judge of every thing, save, as she expressed it, of musty parchments.

All men, besides a natural dislike to milliners' bills, let them be ever so clumsy in every thing else, have a sort of notion of what is becoming to women in dress.

Fips, accordingly, on one occasion ventured to hint to his daughter, that she looked as handsome again when she had not half so many fine things on. She was at the moment just equipped to step forth into the streets of a country town, dressed in a bright green silk pelisse, extremely short, to display the pretty foot and ankle; her stockings were of open-work embroidery, the slippers scarlet, the hat (not bonnet) yellow crape, adorned

with white blond and pink ostrich feathers tipped with scarlet. She also wore, flung across one shoulder, and hung over the contrary arm, a long flying canary-coloured scarf, and held perpendicularly above her head, that it might neither conceal nor derange its trappings, a conspicuous-sized, canopy-shaped, lilac parasol, deeply bordered with a gold-coloured network fringe, and tasseled at every point. Chains, ear-rings, bracelets, brooches, clasps, watch, and reticule, were of course none of them forgotten; while the very backs of the canary-coloured kid gloves were embroidered with lilac and gold.

Fips's remark was received with a sneer, and "I beg, sir, you'll mind your parchments, and give me leave to be the best judge of my dress."

"Well, well, my dear, follow your own way."

"That I shall, sir, you may rest assured."

Such a figure as we have described, walking the streets alone, with a bold erect carriage, it may be believed, drew a good deal of attention, particularly at assize-time, when there were many strangers and young barristers in the town, and such of course were the occasions on which Miss Fips was fondest of making a display. Her generally walking alone, at least until she had picked up two or three young men, proceeded from a combination of circumstances: in the first place, Fips had little time for recreation, and if he had had more, his dutiful daughter would not have been fond of appearing with so unwieldly and unsightly a companion. As to other young women, Miss Fips, proud of her beauty, and the fortune she was taught to expect, treated those in her own sphere with impertinence, while it was very improbable that ladies in a sphere above her would be induced to take by the hand an inferior, whose natural boldness rendered her vulgarity and bad taste so conspicuous. Though we have used the expression natural boldness, it is most probable that the unprepossessing quality we have thus described, was in this instance both produced and strengthened into second nature by that most baneful and unsexing of lessons to a young female, early *personal* display.

The remaining traits in the character of this young woman, together with what we have already said, are quite in accordance with a favourite theory of ours, that want of personal modesty is more than a presumption both of

want of heart and want of taste or genius; because it is a proof of the absence of that susceptibility—that acuteness of moral perception, the presence of which is indispensable to the mental process by which both the powers of genius and the capability of loving are developed, almost, we might say, created in the human mind.

Flattery too, with the want of early control, had made the temper of Miss Fips violent and insolent in the extreme. From the time of her return from school there was no peace in the house, and little, as far as their own set went, in the town. She quarrelled with the neighbours—insulted the boarder clerks—and scolded the servants; and when Fips was too busy with his own, if not more amiable, at least more important avocations, to join her in pouring forth invectives against whoever had provoked her ire, she would stand over his desk and scold himself; or interrupted in a like tempestuous manner, the quiet enjoyment of his bottle of port, his only recreation, till his life became a perfect burden to him.

Still he toiled on—her aggrandizement being the sole object of his labours; nay, he entered eagerly into projects which he could not but be aware must condemn his soul to perdition, to secure to her a marriage above her sphere, and add wealth to wealth still for her! And why? Because his daughter, undutiful and disrespectful though she was, happened to be the part and portion of himself, in which his vanity, his ambition, his *pride* had centered; and his selfishness, when he remembered that he could not carry his riches with him to the grave, sought in her a sort of immortality, at least a prolongation of existence. Yet did this unprincipled being sanctify to himself, (strange sophistry) many a sin, by the belief that he was the fondest of fathers, and did every thing for the love of his only child.

---

## CHAPTER VII.

The death of Sir Willoughby occurred within so short a period of the assizes, that the immediate approach of Alfred's trial gave to the whole terrific transaction the character of a sudden and awful thunder-storm.

Lady Arden and her son, desirous of supporting each other, mutually acted a part painful to both, incessantly concealing their feelings, and denying themselves the solace of unreserved intercourse: whatever their separate thoughts were, neither would confess to the other that they had any apprehensions as to the result of the approaching trial. And yet the conduct of their legal advisers was by no means calculated to inspire confidence. These gentlemen looked extremely grave, asked both Alfred and Lady Arden many questions, and seemed much disappointed at their replies. They were agreed in opinion that the chain of circumstantial evidence was unbroken—almost irresistible; and that the only defence which could be set up was the insanity, and consequently possible suicide of Sir Willoughby.

While the idea of his being insane, never having been entertained by any one but Sir Alfred, nor even by Sir Alfred himself suggested to any one, till after he, Sir Alfred, was actually accused of the murder, it was to be feared the plea would not even be listened to. And yet the idea of Sir Willoughby's having wilfully taken poison, while in possession of his right mind, was still more unlikely to be heard, from his very advantageous circumstances at all times, and the peculiarly happy prospects he at that particular crisis enjoyed. The combinations and coincidences too of trivial events were no less untoward; for all of those, and they were many, which told against our hero, could be established by a host of creditable witnesses; whilst the few which were in his favour were known to no human being but himself; nor had he even spoken of them to any one, until, as in the former plea, after he had been accused. Alfred had a faint and rather confused remembrance of having said something of his motives to Geoffery, in the first moments of affliction. He mentioned this to his lawyers. They had a conference with Mr. Arden on the subject. He replied, but without entering into any explanation, that if they chose to put him in the witness box, he should

esteem himself happy, if any thing he could say with truth, should have any tendency to exculpate his cousin. He was accordingly subpoenaed, and was the only witness for the defence.

The plea of Sir Alfred's amiable and honourable character rendering it highly improbable that he should have committed such a crime; though it must be felt by all, and with his immediate circle of friends and intimates, was all sufficient, could not weigh one feather as evidence. We had, unhappily, instances of persons previously of unblemished character, departing from that character in practice, when strongly tempted by passion, revenge, or avarice; and in this case all these incentives seemed to have been united.

Opinions so alarming, were of course not distinctly stated by the lawyers, either to Lady Arden, or to Alfred. To have done so, would have been an unnecessary degree of cruelty. But such were the sentiments they entertained, and much of which could be implied, not only from their whole demeanor, but, as we have already said, both from the anxious questions they put, and the evasive answers they gave. All this had a fearful effect on the feelings of Lady Arden: concealed agony, and constant fever, were devouring the vital energies, while her mind laid waste, as it were, by so immeasurable, so incomprehensible a calamity, seemed defenceless against the superstitious impressions and wild images of horror which wearied her spirit and aggravated her sufferings, by the ceaseless importunity with which they blended themselves unbidden with the wretched realities of the hour.

The presence of Geoffery too, which she was occasionally compelled to endure, was terrible to her feelings. She literally shuddered as she looked on the man who was destined, should her most horrible apprehensions be realized, to fill the place of both her sons. And notwithstanding the subdued air of solemnity and sorrow he hypocritically assumed in her presence, she found it impossible to divest herself of the idea that she could detect triumph lurking in the depths of his sinister eye; and that his hard spare lips were more than usually compressed, to prevent the corners of his mouth from curling with a fiendish joy; for of such a feeling she did inwardly accuse him. With what thoughts would she have viewed him, could she have known that he was, through his secret emissaries, labouring at the very

moment to fix upon the innocent Alfred that horrible accusation, of which he alone could have proved him innocent; but this was a degree of wickedness of which she was incapable of conceiving the idea. She could not suspect even Geoffery of such.

With the gentlemen of the country too, Geoffery attempted to act a part which in fact he greatly over-acted. He sought every opportunity to dwell at great length on the painful and delicate situation in which he was placed. He sincerely hoped, he said, that Sir Alfred might be fully cleared of so revolting an accusation; yet he confessed he could not himself see how the distinct chain of circumstantial evidence, which had already appeared, was to be got over. He hoped, however, that something favourable might come out on the trial, and most especially he hoped that he might not be called upon to take any part whatever. Yet, if it was indeed possible that Sir Alfred was guilty, he could not wish to see him escape the just punishment his aggravated crime would, in that case, so fully merit; nay, such he declared was his indignation when he took this view of the subject, that if it were not fortunately the duty of the crown to prosecute, he should feel himself called upon—nay, bound to do so; bound to sacrifice every private feeling towards the offender, and as the nearest male relative of poor Sir Willoughby, stand forward the avenger of his untimely end. Yet as he had, he might say, the misfortune to be the next heir to the property, he considered it a happy circumstance that he was not obliged to act, what some might consider an invidious part. He used the expression misfortune, for it certainly would be a misfortune to inherit a venerable family property through the medium of a catastrophe so awful, and what was even worse, so disgraceful; in fact, should the affair so terminate, it was more than probable that he should become almost an exile from the family mansion, at least for many years; he did not know indeed that he should ever be able to bring himself to live at Arden.

These indelicate communications, though murmured in an under tone, and given as much as possible the air of individual confidences, were, from time to time, forced on as many hearers as Geoffery could obtain; for it was not all who would listen to him—many, and those some of the leading men of the country, were indignant at the attempt to bring such an accusation against our hero.

The funeral of Sir Willoughby was naturally delayed by the committal of Alfred, under whose authority the preparations had been proceeding. No one seemed aware what was to be done, or whose orders were to be given and received. Geoffery indeed was disposed to take upon himself the command, as well as the part of chief mourner, in Alfred's place, but this Lady Arden arrived in time to prevent.

When appealed to, she clasped her hands and raised her eyes to heaven for a few moments, as if she there sought counsel, then with admirable dignity and presence of mind, she ordered that the solemn preparations should stand still till the necessary forms of law having been gone through, her son should be at liberty to take his place at the head of his brother's grave; inferring thus, by her reply, that there existed not a doubt of Alfred's innocence being established.

Accordingly, in pursuance of these commands, the remains of her eldest son still lay in state at Arden, when the anxious day arrived on which her younger son was to stand at the bar of justice, arraigned for the murder of his brother.

While thus Lady Arden proudly strove to have it thought, nay, if possible to think herself, that she had no fears for Alfred; how, but by the absorbing nature of her fears for him was the blunted state of her feelings on all other subjects to be accounted for. The death of Willoughby, had it come alone, with what deep sorrow would it have afflicted her; and how greatly would that sorrow have been aggravated, by but a suspicion that he had committed the awful act of suicide; yet to have that suspicion proved beyond a doubt, was now the only hope of her existence; while the simple fact of Willoughby's death was driven by the exigences of the hour from its natural position in her mind, and viewed as it were in the distance of memory, like a sorrow long gone by, solemnly but calmly. Were Alfred safe, his honour and his precious life rescued from the frightful peril they were in, her heart told her that all grief would be forgotten, and joy unspeakable would be her portion.

---

## CHAPTER VIII.

The night before the trial, Lady Arden, by especial favour and kind connivance, passed in the prison of her son. She knelt at the side of the bed, on which she had insisted on his laying himself, and, if possible, sleeping, in order that he might obtain strength and composure for the task which awaited him.

After many last words and repeated affectionate entreaties, that he would try the effect of silence and stillness, at length, with a hand fondly clasped in both his mother's, he did sleep, though but for a short time, as calmly as an infant. Lady Arden, in the position in which she knelt, shaded from his countenance the immediate glare of the lamp which stood on a small table behind her. Sufficient light, however, still rested on his sleeping features to give to her fond gaze all their loveliness. The perfect beauty they always possessed, the more than common share of a mother's love she had ever borne him, the enthusiasm of every feeling naturally exerted by his impending peril, altogether called up such emotions, that she seemed to look on the face of an angel; while fast falling tears unconsciously inundated her cheeks, as memory pourtrayed the infant years of this her darling son;—the smiling babe sleeping in her bosom; the laughing child playing at her feet. Then followed pictures of his boyish sports and gleeful hours, till her heart bled; then traits of docile obedience and dutiful affection; and, as he grew in years, of that gentle, noble, self-immolating nature, so peculiarly his own. All these were remembered with tender yearnings which no words can describe. A fearful idea next presented itself, that such beings were but lent to earth: they were not destined to sojourn with us; in a moment of agony and terror to those left behind, they were caught up again, and absorbed by that all-perfect spirit of which they were but emanations. Such thoughts gave, for a time, a character of wildness to the fervour of her prayers; confusion of every faculty followed; she became unconscious of the purport of the words she rapidly uttered; and then her lips ceased to move: a silent statue, with hands and eyes uplifted, one solitary thought possessed her being; it was, that in her helplessness she knelt at the foot-stool of Him who had restored to life the widow's son when

he was already dead, and had given him back to his mother. Her son was still alive; the mercy that had restored surely could preserve. Alfred smiled in his sleep, and gently pressing the hand which still held his, suddenly opened his eyes with an expression which showed that for a second he knew not where he was. Short was the respite: in a moment more, the shade of pain which passed over his brow, and the look of anxious, kind inquiry which followed, as his eye met that of his mother, proved that consciousness had returned.

Morning was near; and though there were still many lingering hours of suspense to get through, sleep was thought of no more—conversation was renewed—every minute particular again enumerated—Alfred's defence reconsidered.

His language, the expression of his countenance as he spoke, had again the effect of awaking a proud confidence in the mind of Lady Arden, that it was impossible for any one to believe him guilty. As for Alfred himself, his confidence was still based on the firm belief that, on full investigation, what called itself justice, could not so fearfully err as that life should be forfeited on false grounds.

Thus supported, both, as the time approached, instead of sinking, seemed to acquire supernatural strength. To part, when the unavoidable moment came, was indeed a severe pang. But this over, Lady Arden's demeanor, among the numerous friends who flocked around to offer her their countenance, attendance and support on the terrible occasion, was calm, dignified, noble, almost haughty.

Though, of course, no one in her presence volunteered to pronounce, in so many words, a fear or even a doubt respecting the result of Alfred's trial, the expression of many a countenance did so; while also the very excess of almost reverential consideration for himself seemed to infer such a feeling; and she could not forgive any one, however kind and well-meaning, who did not spurn with unequivocal contempt, as the breath of pestilential slander, the thought of an accusation against her son. Such an accusation, too! and against such a son!

---



## CHAPTER IX.

In consequence of the intense interest naturally excited by the approaching trial, the court-house was, as may be supposed, crowded to excess.

There was a pause, however, at the precise moment we are describing in the public business; for a cause having been just concluded, the judge had absented himself for a few minutes. Persons were in the mean time handing across the green table, stuck at the end of long, slight, white wands, which seemed to be split at the point for the purpose, notes, letters, and folded papers, to the various individuals who sat round, out of reach of communication by any other means; some, indeed, employed the still less ceremonious mode of flinging across the table little folded notes, not larger than butterflies, of which a pretty constant flight was thus kept up. The personages round this table we may mention, for the benefit of those not conversant with the inside of a court-house, were principally barristers in their wigs and gowns. The few eminent ones, who had any thing to do, had clerks seated at their elbows, and all had beside them large green or purple baize or serge bags, purporting to contain papers, but in many instances, suspected of harbouring more sandwiches than briefs. Beside the counsel for the crown, whose business it was to conduct the prosecution of Sir Alfred Arden, sat wedged with difficulty into the limited space allotted him, and anxiously poring over his documents, Mr. Fips. A little above, and immediately behind him, in the lowest row of seats appropriated to spectators, sat Geoffery Arden, with Miss Fips, whose style of dress, if possible, was more extravagantly absurd, and indecorously showy than usual, which, together with the incessant swinging of her hat and feathers, made her a most conspicuous figure. Indeed she and her paraphernalia might be said to act most effectually the part of a flying flag, pointing out to the spectators in general where this group of principal characters were to be found.

It had been weighed by Lady Arden and her many friends, whether her ladyship should await in an adjacent retired room, communicating by a private door with the gallery, or how; or where she had better be placed to

be ready to appear with least exertion, when called upon for her evidence. She had herself, however, decided that the suspense of not hearing and knowing what was going on, even at every step, would be more impossible to endure, than any agony however hard to bear, to which being present throughout could subject her. She was therefore already placed in the corner of the gallery, nearest the witness box, but purposely so surrounded by a group of her own most particular friends, as to be effectually screened from general observation. With her ladyship was Mrs. Dorothea, Lady Darlingford, and Madeline, all of whom had been subpoenaed as witnesses.

The judge now returning into court, took his seat on the bench, with an air of even more than usual solemnity. The prisoner was called to the bar.

"Do not, do not look!" said Mrs. Dorothea, bending across, and interposing herself between Lady Arden and the view of the dock. But Lady Arden had already covered her face, naturally shrinking from the fearful trial of seeing her son enter.

Alfred appeared. He was aware that a great portion of those present must be persons well known to him. He had no reason to shrink from the scrutinizing gaze of any one. With quiet dignity, therefore, on his first entrance, he looked all round the court, and few were found who had callousness to resist his mild, calm, clear eye, the expression of which was rather an appeal to the better feelings of humanity than that angry defiance of his accusers, which his circumstances might have almost justified; and which, perhaps, even he would have experienced, had not solemn and tender regret for the fact itself of his brother's untimely death, softened and subdued his feelings. Such was the immediate effect, both of his countenance and his noble bearing in every respect, as far removed from guilty hardness as from guilty fear, that many who had on hearsay condemned now in their hearts acquitted him.

We speak chiefly of the impression made on persons in Sir Alfred's own sphere in life; that, however, which was produced upon a much larger body, the respectable yeomanry of the county, and tradesmen of the town, was in general very different. Among these a doctrine had been artfully promulgated, which though in itself perfectly just, was in this instance, well calculated to prejudice the judgment, namely, that if gentlemen will commit

crimes worthy of ignominious punishment it is the duty of those in whose hands the administration of justice is entrusted, to show them that there is not one law for the rich and another for the poor. It is not because a gentleman can get ninety thousand a-year by murdering his brother that he is to be allowed to do so with impunity, when a poor man, who sees his wife and children starving and steals a sheep to feed them, must be hanged!

This popular proposition, in the abstract so perfectly just, Fips had at the very first given out, as a sort of text to preach from, to one or two vulgar, vehement, levelling friends of his own; and from that moment affected himself, as became the attorney who was to conduct the prosecution, the most prudent taciturnity possible.

Possessed, then, with these abstract ideas, and doggedly determined to apply them in the present case, the class of persons alluded to saw in the beautiful serenity of our hero's aspect no better feeling than a confidence, which they were determined to show him was ill-founded, that his rank in life was almost a guarantee against his suffering the extremity of the law.

The indictment was now read aloud, and poor Alfred heard himself accused, with awful solemnity, of the wilful murder of his brother, Sir Willoughby Arden, by maliciously and feloniously administering to him a certain portion of arsenic, in some wine and water. The prisoner, of course, pleaded not guilty; and the counsel for the prosecution, abstaining from opening the case by a speech to the jury, proceeded to call and examine witnesses. The first of these were the servants who had been hastily called into the room by Alfred when Sir Willoughby was dying. They swore to the deceased being insensible, and in convulsions when they entered the room, to his having been apparently in perfect health at and after dinner; to Alfred's having, in his first alarm, called aloud for antidotes against poison, naming arsenic in particular. Dr. Harman was next examined. He proved, that at the time he arrived Sir Willoughby was quite dead; that he believed his death to have been occasioned by poison—that poison arsenic. He then underwent a tedious cross-examination, as to the tests of arsenic. He had made poisons much his study. He had attended the opening of the body. The state of the stomach denoted the presence of some corrosive stimulant. Arsenic is a corrosive stimulant. He had applied to the contents of the stomach several tests, such as sulphate of copper, ammoniacal sulphate of copper, nitrate of

silver; ammoniacal nitrate of silver; and sulphuretted hydrogen gas; the results of all denoted the presence of arsenic; there was an immense precipitate of arsenic, quite enough to kill a man. Being asked, had not every test which had been tried for the last century and half been said to be fallacious, he replied, that if this were true of the tests separately, yet, when the results of three were uniform, no chemist could have a doubt, but that he had also had recourse to the infallible test of reduction, by which he had obtained crystals of white arsenic. Had he not said that a fit might have been attended by similar symptoms? He had. What, then, had confirmed him in his belief, that the deceased had died by the effects of poison? Inward appearances, on the body being opened, and an examination of the contents of the stomach.

Parts of this gentleman's evidence were supported by that of several other medical men.

Some judiciously put questions then drew from the reluctant Doctor the fact of Alfred's attempt to rinse the glass, in which a sediment of arsenic was subsequently found, and his having, when the Doctor interfered, made no attempt to explain conduct so extraordinary. On this, a kind of murmur passed round the court; almost every face looked shocked, and many shook their heads, as though they had whispered their next neighbour, "He must, I fear, be guilty!"

The conviction was still stronger, and the horror still greater, when Dr. Harman, so evidently an unwilling witness, literally compelled by stern justice to dole out that portion of the sad truth each question extracted from him; when he, with a solemn voice, a cheek pale with emotion, and a moistened eye, described the time and manner, when, as the prisoner was in the act of bending forward, he had distinctly seen glide from within the breast of his waistcoat and fall to the ground, a piece of paper marked poison, and which was found, on being lifted up, to contain among its folds a few remaining grains of arsenic. He here produced, being called on so to do, the piece of paper described. The packet of arsenic being missed on the morning after Sir Willoughby's death, from where it had lain on the previous day, was next proved by several servants. That the prisoner knew where it lay was also proved. The groom then swore to having seen the prisoner coming alone from the saddle-room (a place he was not in the habit

of frequenting) with a similar packet in his hand. Next was proved the subsequent finding of a packet of arsenic by the Coroner, in a locked escritoire of the prisoner's, and of which the prisoner kept the keys about his person. The packet of arsenic was now produced in court, and identified on oath by several servants. The piece of paper which Dr. Harman had seen fall from within the waistcoat of the prisoner, was here shown to the Judge, and handed from one to another of the Jury, together with the packet, from the outer covering of which, it was evident to all eyes, that the smaller piece had been torn, apparently as the readiest vehicle which offered, for carrying away a portion of the poison. The reluctance of the prisoner to permit the body of the deceased to be opened, was proved by several medical gentlemen, as well as by other persons his not, in short, yielding this point till compelled so to do by the authority of the Coroner.

The servants of the house, and such persons as had seen Sir Willoughby since his return to Arden were next strictly examined, and cross-examined, respecting his health, spirits, and sanity. All swore without hesitation, that up to the last moment on which each had held communication with him he had been in good health, in excellent spirits, and perfectly sane. The elderly squire, who, it may be remembered, had met the brothers out riding, on the day of the evening on which the death of Sir Willoughby took place, having chanced, when the sudden demise became known, to mention the meeting, together with the nature of the conversation which had passed, Mr. Fips in his diligence and zeal had made him out and sent him a subpoena.

This gentleman was next examined, and his evidence proved that Sir Willoughby, a few hours before his death had been in high health and spirits, and had spoken freely of his intended marriage and projected tour. This seemed conclusive. After hearing such evidence from a respectable and disinterested witness, it appeared quite impossible to believe that Sir Willoughby, a few hours subsequent to this conversation, should have sought to put a period to his own existence. Many persons were questioned as to whether the prisoner had expressed any doubt of the sanity of his brother, or any suspicion of his having taken poison, previous to the time of the accusation of his having administered the poison to his brother, having been brought home to himself on the coroner's inquest; no one had heard him express an opinion of the kind before the time alluded to, except indeed any inference might be drawn of a secret knowledge that poison had been

taken or administered, from his having, in the first moments of confusion, called anxiously for antidotes against the effects of arsenic. The counsel for the prosecution argued, that this told against the prisoner. It proved a guilty knowledge of the fact, that arsenic had been swallowed. A feeling of remorse seemed to have induced the effort to save his brother's life, even at the risk of exposure; but no sooner was Sir Willoughby dead, than the prisoner makes every effort to conceal that poison had been taken. For the acuteness of this remark, the counsel was indebted to a marginal note annexed to his brief by Mr. Fips. As a matter of form, persons were next examined as to the amount of the property to which the prisoner, by the death of his brother became sole heir.

When the enormous sum was sworn to, many a one sighed involuntarily to think, from how many anxious cares one year's income of such estates would relieve them.

Lady Arden's evidence being the next required, and every consideration being granted to her ladyship's feelings, the Judge had humanely sent a message round to request that Lady Arden might not be hurried.

A pause therefore ensued, during which were wrought up to the highest pitch, expectation, compassion, and that strange curiosity incident to human nature, to see how others can endure when suffering is extreme.

---

## CHAPTER X.

At length, in the midst of perfect stillness, without one preparatory sound or movement, Lady Arden stood in the witness box, wrapped in the deep mourning in which the death of her elder son had enveloped her.

The blood ran cold in the veins of all present. A tear startled into almost every eye; while some of those who were themselves mothers, were moved by a sympathy so heart-rending, that unconsciously they groaned aloud.

So pure, so natural, so easily understood are the feelings of the parent, that every class could enter into them. Nor did the kindly commiseration of the crowd diminish, when they had leisure to mark the matronly beauty of her countenance; pride and disdain of the insult offered to the hitherto unsullied honour of her son, struggling with agony kindled in her eye, while her cheek was blanched, and her lips parched: and then the strong resemblance her every feature bore to those of her son! her favourite child! the prisoner at the bar: while evidently conscious where he stood, her eye quivered beneath its lid, longing yet dreading to turn upon him. She could no longer resist—she looked down at her son—he looked up at her—their eyes met.

To comfort and encourage her he tried almost to smile: it was rather a radiance from within shining for a moment through all the nobleness of his countenance, in honour of the dutiful love he bore her; and then a pang passed across his brow, that he should be to her a source of suffering. She sank on a chair considerably placed behind her, and for a few seconds hid her face; lest, however, emotion should be construed into fear, and fear into acquiescence in the accusation against her son, she aroused herself and again stood prepared to reply. The judge, from a feeling of respect, took upon himself a considerable part of the duty of putting the necessary questions to her ladyship. He did so in the mildest and most considerate manner, and in a tone of kindly sympathy which did credit to his heart—the counsel of course assisting, and assisted himself as hitherto, by the marginal notes to his brief, supplied by Mr. Fips. These had the effect of drawing from her ladyship the purport of the confidential conversation overheard by

Geoffery, which, with the remainder of Lady Arden's evidence, clearly proved the following points; namely—that both brothers had been attached to the same lady—that Alfred had been accepted previously to the arrival of his brother—that subsequently he had been discarded and his brother accepted—that he had felt his disappointment more deeply than he had suffered to appear—that he had ascribed the fickleness of the lady to mercenary motives—and that he was in the habit of animadverting frequently on the unfortunate situation of younger brothers without fortune, and therefore without pretensions.

In reply to another series of questions, she was compelled to confess, she had never apprehended that derangement might at any time be the consequence of the injury Sir Willoughby had in childhood received on his head—that she had never perceived any symptoms of derangement about her eldest son—that Alfred had never mentioned to her any apprehensions of the kind till after the present accusation had been brought against himself—that in his letter, announcing the sudden death of his brother, he had ascribed it to a fit of apoplexy, and made no mention of poison under any circumstances being the supposed cause, or expressed a suspicion either of insanity or suicide—and lastly, that Sir Willoughby at the time of his demise was in full possession of a large unencumbered property, and in expectation of being married to the woman of his choice, a lady also possessed of large estates, and who, in company with her mother, he was very shortly to have joined in a tour of pleasure on the continent.

The evidence of Lady Darlingford, Madeline, and Mrs. Dorothea, were taken in succession, and though not so full, went to prove the same points as that of Lady Arden. This closed the prosecution, and the prisoner was now called upon for his defence.

Who shall describe the throb of his mother's heart, when the first sounds from those loved lips broke the stillness of the expectant court. The tones of that voice were harmony itself; they had ever been music to her ear—what were they now? Oh, how strange is the mingling of agony with the thrill of love!

A momentary convulsion passed over the mother's features, followed by a silent flood of tears; yet, with that self-command which dire necessity alone

can teach, no sob that might be heard, no sigh escaped her.

Alfred spoke with solemnity of the melancholy impression which had often visited his own mind respecting the possibility of his brother becoming at some time insane; but confessed, that he had never mentioned his fears to any one. He spoke of a strangeness of temper as the foundation of the apprehensions to which he alluded; but confessed, that its ebullitions were confined to private interviews with himself. He spoke of the state of excitement under which Sir Willoughby laboured on his last return to Arden; but confessed, that to all less interested observers than himself, the manner to which he alluded was calculated to appear but the result of his brother being at the time in particularly high spirits. He spoke of a great inequality of humour which had latterly excited his alarm; but confessed, that this inequality had appeared only in their private interviews. At every but, the solemnity of the judge's countenance deepened, and the jury looked at each other with an expression that seemed to say—"That won't do."

Alfred proceeded to state how both the packet of arsenic, and the torn piece of paper marked poison, had come into his possession, and his reasons for removing and securing the former;—of his having subsequently concealed the latter about his own person, he had he said, from the state of his feelings at the time no recollection.

The judge frowned involuntarily at the vagueness of such a defence.

"People," whispered Mr. Fips to his neighbour, "are not to get off for committing murder, because they have short memories."

Alfred went on to say, that of the attempt to rinse the glass, he had a faint remembrance; that the impulse which guided his hand at the moment, must have been (as far as the thoughts of a season of sudden affliction, such as that to which he alluded, could be defined) a desire to conceal the suicide, which he feared had been committed; and that the same motive, strengthened by the frequently-expressed wishes of the deceased on the subject, had caused him to oppose, as long as possible, the examination of his lamented brother's remains.

The testimony of the witnesses had increased the feeling against the prisoner, while these unsupported attempts at explanation seemed, to such

as were disposed to judge him harshly, but so many ingenious subterfuges, invented after accusation, to meet each point, and created, accordingly, in their minds, a strong sense of disgust, arising from the frightfully powerful contrast between the amiable motives laid claim to, and the horrible crime of which they still believed him guilty.

The judge demanded to know if the prisoner had, previously to being himself accused of the murder of the deceased, confided to any person his alleged belief, that a suicide had been committed, with the reasons he had now stated to the court for wishing to suppress that supposed fact?

He had alluded to the subject in conversation with Mr. Geoffery Arden.

Here Geoffery, the sole evidence for the defence was called to the witness-box.

Did he remember any conversation of the nature referred to?

There was only one occasion on which he could call to mind Sir Alfred having made allusion to the cause of Sir Willoughby's death.

He was requested to state minutely what had passed on that occasion.

About half an hour after Sir Willoughby had expired, he had followed Sir Alfred to the bed-chamber of the deceased, where he had found him reclining his face against the bed, apparently in a state of great mental suffering. He had made some attempts to calm his agitation, but without success; when, however, he was about to retire, Sir Alfred had looked up suddenly, and asked him if the Doctor had not said, that symptoms similar to those which had attended the dying moments of his brother, might have been occasioned by a fit of apoplexy. On being answered in the affirmative, he had added hastily, "Let it be so supposed then, and discourage all further inquiry;" he then again hid his face.

Had nothing more passed?

Nothing with which he could charge his memory.

"Bad memories are the fashion," whispered Fips, with a grin of triumph, and a grunt of approbation.

Here the prisoner's counsel cross-examined Geoffery in the closest and ablest manner, but could not draw from him that part of the conversation in which Alfred had expressed a fear of Christian burial being denied, and his mother's affliction increased, should the suicide be suspected. Thus mutilated, the evidence of the sole witness for the defence, told rather against than for the prisoner's cause, but, as there had been no third person present, the case was without remedy.

The judge asked if the prisoner had any other witnesses to call, or any thing more to say in his own defence; and on receiving a negative to both questions, looked disappointed. After a short pause, he commenced his charge to the jury, in the course of which he clearly and ably recapitulated the whole of the evidence.

This occupied between two and three hours, so that lights became at length necessary, though at his lordship's desk only, for the sake of referring to written notes, the imperfect remains of the daylight being sufficient for all other purposes.

The feelings of the court were now much excited; the solemn voice of the judge had for some time been the only sound heard, while the partial illumination at such a crisis had great effect, rendering more than ordinarily conspicuous the figure of his lordship; his costume so strongly associated in our minds with the idea of his being the arbitrator of life and death; his countenance, which happened to be peculiarly striking, and, in particular, the flash of his eye, which was very remarkable; his manner, too, was impressive, the tones of his voice fine, and his diction clear and forcible; his expositions on points of law, were luminous even to the humblest apprehensions. He told the jury, that on such points it was his business to dictate to them, and theirs to be implicitly guided by his dictum. To decide what facts were proved in evidence, and the degree of credibility due to such evidence, was, he told them, their province; and in deliberating on a case which had naturally excited so intense an interest in the neighbourhood, his lordship entreated that the jury would dismiss from their consideration all they might have previously heard, or even thought on the subject, and confine their whole attention to the evidence delivered in court this day.

Much, he remarked, had been often and eloquently said respecting the extreme fallibility of circumstantial evidence; but where all the circumstances agreed, such might, in his opinion, be even more conclusive than positive testimony: for, in the one case, we deduced the fact from known facts, and therefore knew it as it were of our own knowledge; while in the other case, we staked our belief on the veracity of a witness or witnesses, which, though generally believed to be credible, might by possibility be otherwise. In the present instance, he was sorry to say, that the painful duty of his office compelled him to point out to their attention, that the chain of circumstantial evidence seemed more than commonly strong and connected, while every link was supported by the testimony of a host of, at least credible, and in many instances more than credible, since they were unwilling witnesses: still, it was for them to decide whether all the circumstances did agree, and whether the evidence in support of each circumstance was undoubted; for, if they felt a doubt, it was their duty to give the prisoner the benefit of that doubt. It was unfortunately a case so ultimately connected with the most powerful and agitating feelings, that it was difficult in the extreme to confine the attention to the naked force of evidence. He again, therefore, entreated those on whom the ultimate responsibility of the verdict rested, to lay aside their feelings, and use only their judgments.

His own feelings were, he confessed, powerfully interested by the defence of the prisoner; yet, he felt it there again his painful duty, to point out that there was neither circumstance nor fact, brought forward in the whole of that defence, based on any evidence whatever; that all rested on the unsupported assertions of the accused party. That the plea attempted to be set up, of Sir Willoughby's insanity, was not only unsustained by evidence, but that the very contrary had been proved, on the testimony of those most intimately acquainted and closely connected with the deceased. While there was at least negative proof, that even the prisoner had never expressed such an opinion, till after it became necessary to meet the accusation against himself. And lastly, that the prosperous and peculiarly happy circumstances, in which the late Sir Willoughby Arden was placed at the time of his sudden demise, made it wholly incredible, that, being in possession of his reason, he should of his own will, have taken the poison. It had been proved in evidence, that Sir Willoughby had been in perfect health, at and for some

time after dinner—that he had supped in company with the prisoner only—that the remains of arsenic had been found in one of the glasses—that Sir Willoughby had died immediately after supper—that his death had been occasioned by arsenic—that the prisoner had attempted to rinse the glass in which the remains of arsenic were afterwards found—that a packet containing arsenic had lain on a certain morning, in a certain apartment—that the prisoner had been seen to come from that apartment alone, in the afternoon; that it was not an apartment usually inhabited or visited by the prisoner—that there was evidence the prisoner was aware the packet of arsenic lay there—that the said packet was missed the next morning, from the said apartment—that the said packet was subsequently found in a locked escritoire of the prisoner's, to which he alone had access—that a torn piece of paper, visibly a portion of the outer cover of the said packet of arsenic, had been seen, by a witness whose respectability and credibility were beyond a doubt, fall from within the breast of the waistcoat of the prisoner—that the prisoner had resisted the opening of the body—that Dr. Harman's opinion the deceased had died by the effects of poison, would not have amounted to evidence, had the body not been opened—and finally that the defence rested entirely on the unsubstantiated assertions of the prisoner himself. As probable motives could not become subjects of proof, though much had been said of them on the trial, he would say nothing of them here: they were all calculated to awaken feelings for, or against the prisoner; and once more, he entreated the jury to dismiss every thing but evidence from their minds, and give their verdict accordingly. He then told them distinctly what verdict it was their duty to their country to give, if they considered these facts proved, and what verdict was due to humanity, and the prisoner, if they still felt a doubt.

From the circumstance we have already mentioned, of candles being placed on the desk of the judge only, the twilight-like sort of obscurity which, by the time his lordship approached the conclusion of his charge, had stolen over the rest of the court-house, added much to the solemn effect of this most anxious part of the proceedings. The forms of the jurymen, but dimly discerned, leaning over with painful eagerness, to catch, as it were, the very thoughts of the judge; their eyes glancing in the distant light, as they removed them, from time to time, from his countenance, to look round on each other; and when he ceased speaking, the pause that followed—and

then—the verdict, which issuing as it now did, from the gloom in which the whole group was wrapped, sounded more awfully, more like the condensed, irrecoverable decision of the *judicial twelve*, than when, in the broad light of day, the foreman, though in his official capacity in fact the voice of all, still looks the individual.

The single word pronounced was—Guilty!!!

As though the whole assembly had hitherto held their breath, a sort of universal gasp was distinctly heard; and during the moment, the judge was preparing to pronounce the awful sentence of the law, a movement was observable in the part of the gallery where Lady Arden, though not visible, was known to be.

---

## CHAPTER XI.

From the first our hero had, as we have already said, many friends whom no appearances, however strong, could induce to believe him guilty of the crime of which he was accused. It seemed, however, to be universally expected that he would be acquitted; and while this was the belief, there were some who said that in the face of such evidence it would be a great shame, and that when men of rank offended against the laws, they ought more especially to be made public examples of.

No sooner, however, was he actually condemned, than almost every one was shocked; the tide of public opinion, with but few exceptions, turned in his favour; nay, a sort of tumult arose around the court-house, and in the streets adjacent. We must, however, return to the feelings of those more immediately concerned.

The dismay of Lady Arden was as complete as it was astounding; she seemed as totally unprepared for the event, as though the possibility of a fatal result to the trial had never been anticipated. Her excitement was terrible; the pallid cheek was gone, and burning spots of crimson had succeeded, while the lustre of her eye was rendered supernatural by a restless sense of the necessity for instant action! There was as yet, none of the quiescence of desolation; she neither lay nor even sat; she stood, yet standing wrote, and with her own hand, though in strange, large characters, unlike her own, a powerful and heart-rending appeal to royalty itself. "Time! time! at least!" was the prayer of her petition; "The day of truth may dawn," she said, "when it is too late! Let not my child be judicially murdered during the frightful darkness of misjudgment."

Lord Darlingford, who enjoyed the private friendship of his Majesty, set out with this letter to carry it himself to the foot of the throne; while applications were also being made through the proper official channels. Thus was the early part of the night occupied. The latter portion was spent in deep and secret consultation with Mr. Edwards, now the chaplain of the gaol, but formerly the private tutor of Willoughby and Alfred when boys.

So thorough was this gentleman's knowledge of our hero's character, and so entire his conviction of his innocence, that he had been from the first resolved, should it become necessary, to use every facility which his sacred and confidential office gave him, to favour an escape. Indeed his feeling was, that he should be an accessory to murder, did he omit any means in his power to save the life of our hero. He had accordingly, before the trial, as a matter of precaution against the worst, made a journey to \*\*\*\*\*, and without giving his name, and of course without assigning his object, got Mrs. \*\*\*\*, the famous modeller in wax, to make a mask or model of his countenance, so perfect a resemblance, both of him and of life, that there was nothing wanting to make the deception complete, but the play of feature requisite in conversation. The object of the present anxious conference was to mature the plan of how and when, with least fear of detection, our hero should, aided by this disguise, attempt to personate Mr. Edwards, and so pass out of the gaol, while he, Mr. Edwards, remained in his stead. Nothing could of course have tempted Alfred to contemplate an escape previously to his trial, to which alone he looked for the justification of his aspersed character, while the difficulty—nay, the almost impossibility of escape after condemnation, was awful to contemplate. No friend or relative would now be admitted to the prisoner, except by a special order, and in presence of a turnkey, while the difficulty was increased by the new regulation to prevent suicide, of locking up two other prisoners for minor offences with the person condemned to suffer death; so that they were thus never even for a moment alone. The chaplain, no doubt, had the privilege of conferring with Alfred without witness; on his appearing, therefore, it was a matter of course to remove the other two prisoners. By virtue of the same privilege the chaplain could dismiss the turnkey, not only out of sight, but out of hearing for half an hour, or an hour, at pleasure; and on these circumstances was every hope founded. It was also customary for Mr. Edwards on quitting prisoners, merely to bolt them in himself, and go away, without waiting the reappearance of the turnkey. This at first sight appears an irregular proceeding, and would seem to offer another facility; it was, however, the duty of the dismissed turnkey to be in waiting at the foot of the stairs, or in some passage by the way. Alfred, indeed, in the perfect disguise proposed, might (as Mr. Edwards) pass him unobstructed, but then it became the man's further duty, on seeing the chaplain go by, to return instantly to the condemned cell, and replace there the two men appointed to

remain with the prisoner. It was thus evident that every thing depended either on gaining over this one turnkey, or on his being dilatory in the performance of this last specified duty; for, except the deception was thus quickly discovered, by the immediate return of this man to the cell, and the alarm consequently given before Alfred got clear of the gates, neither any other of the turnkeys, nor the porter, so long as they believed him to be Mr. Edwards, would think of interfering with his passing out. These were the facilities. Then again the difficulties were, that nothing could be attempted during daylight, and the lock-up hour varied with the season, so as to be always before dark. During the preparations for the night, too, all persons connected with the prison were peculiarly vigilant, and on the alert. Mr. Edwards would certainly be at liberty to remain with the prisoner some time after dark if he chose; but then, his departure would be so anxiously waited for, and the identity of the prisoner so promptly looked to by those whose business it was to make final arrangements for the night, that any attempt to escape at that hour must, to a certainty, be discovered before the prisoner could get clear of the gates.

A morning escape, therefore, before daylight, would be the least impossible, as the governor would not then be up, and probably but one or two of the turnkeys would be stirring; while, even those, with the dangers, as it were, of the night over, and the day before them, would be less fearful, and consequently less vigilant. The difficulty in this case was, that the chaplain's visiting the prisoner at so early an hour on any day *but* that of the execution, would excite so great suspicion, that it was necessary to put off the attempt until the last morning. To this Lady Arden was strenuously opposed: to her it appeared like wilfully casting away every chance, every hope, but the one—and—should that fail—oh, it was maddening to contemplate the alternative!!!

He did not mean, Mr. Edwards argued, to leave it to the last, if so doing could be avoided; if any prior opportunity of escape could possibly be obtained it should be seized; but a rash or unsuccessful attempt would but close the door against all future hope, and therefore be much worse than none. To arguments such as these, Lady Arden's judgment was compelled to yield, though her feelings were still strongly opposed to the miserable idea of waiting in supineness, and seeing the terrible hour approach—her son, still in the hands of his murderers! and to think, that should the attempt at

last fail when that hour arrived, they would then have a right—to——"A right——oh, no!" she exclaimed, suddenly interrupting herself: then with vehement enthusiasm she proceeded, "No! not were he, in truth, the veriest of criminals—man—weak, short-sighted, mortal man, whose own frail tenure is but a breath of air, and a few drops of blood—what right has he, with impious hands, to take away that mysterious gift of life which Heaven, for his own inscrutable ends, has given?"

And although it was strongly excited feelings on her own individual case which awakened such thoughts in Lady Arden's mind, perhaps she was right;—perhaps, if even the murderer's bloody hands were but fettered, and the law itself declared it dared not break into the sacred citadel of life;—that it dared not prematurely dissolve the mystic union betwixt body and soul, formed by heaven, and incomprehensible to mortal ken:—perhaps were there no such thing as legal murder, sanctioning, at least, the act—reconciling the imagination to the fact of a violent death by human hands—the slayer of man would become, in the eyes of his fellow men, so utterly a monster, so thoroughly a fiend, that the crime of murder would disappear from the face of the earth.

Ere, however, such a happy age can arrive, not only must salutary laws bind, or civilization change the secret assassin; but rapine, calling itself conquest, must be banished from the world; and the murderer of tens of thousands, to gild a sceptre, or gem a crown, cease to be held on high, with laurel wreaths encircling his brow.

---

## CHAPTER XII.

The next day, which was Saturday, Lady Arden, by means of an order from the sheriff, obtained an interview with her son; but it was short and unsatisfactory, and a turnkey was necessarily present.

It was her wish to have remained entirely in the prison, but the permission could not be obtained. Yet her manner was not characterized by the lingering of tenderness; instinct or desperation seemed at this crisis to have awakened in her bosom a fierceness foreign to her habitual nature. Her attitude, her countenance implied the frantic conception, that she could afford personal protection to her son: and, unconsciously directed by the same impulse, she even stood between Alfred and the door of the prison. Shortly, however, she was obliged to depart.

Mr. Edwards's visits were as late, as early, and as frequent as usage would permit. His ingenuity was constantly employed; his vigilance on the ceaseless watch; but the night of Saturday wore away, and the morning of Sunday dawned, and no opportunity of making an attempt at escape affording the slightest prospect of success, had offered. During the long, wretched day of suspense and agony nothing could be done. Another interview, if possible more heart-rending than the last, had been granted to Lady Arden, and evening was again approaching, while no accounts had yet come from Lord Darlingford. At length a letter did arrive by express. It did not say, in so many words, that he had failed in his mission; it even spoke of continued efforts: but it strenuously recommended that the escape should be attempted at all hazards. Such a letter, to the feelings of the parties interested, amounted to a repetition of the sentence of condemnation.

There was now but the one solitary hope left for every thought to cling around; while it appeared to be reduced in probability to the straw at which the drowning man catches: for what the two preceding nights had offered no opportunity of accomplishing, there seemed but little chance should be compassed on this last remaining one. The evening, too, was already gone, and the lock-up completed; nay, the night itself was on the wane; so that

now, all seemed to depend on Mr. Edwards's early visit to the prison, the one last hour before dawn, on the thus fast approaching morning of the Monday, the day fixed for the execution.

Some hours after midnight, a desperate storm of thunder, hail and rain came on. And strange it was, that the roaring elements should thus seem, as it were, to sanction the legendary belief, already mentioned, as prevalent among the ignorant persons of the neighbourhood, that all events disastrous to a member of the Arden family were accompanied, or preceded, by terrible tempests. And, however irrational such an idea, many inhabitants of Arden, as they lay in their beds that awful night, and were suddenly awakened by the thunder, ere they slept again, shuddered involuntarily at the thought, that the old superstition was being at the very moment fulfilled.

The storm continued, and between five and six in the morning was still raging. Rejoicing in the din, the confusion, and the prospect of prolonged darkness it afforded, Mr. Edwards wended his way through its fury towards the gates of the gaol. He entered, and proceeded to the condemned cell. From his coming so early it was supposed that he meant to pray and converse with the prisoner for some hours. In a much shorter time, however, than was expected, the porter saw him, as he supposed, approaching, with a somewhat hasty step, along the passage, to take his departure. It was Alfred: but the disguise was perfect; and the porter had no suspicion. A moment more and he must have passed safely out—when a sudden cry was heard—"Stop the prisoner! Stop the prisoner!" And the turnkeys, running and breathless, appeared in pursuit.

---

## CHAPTER XIII.

During a night of such awful importance, fear and hope both, as its hours advanced, mounting towards their climax, it will be readily believed that Lady Arden had not attempted to seek repose.

Regardless of the searching wind and driving rain which beat against her face and bosom, the blinding flashes of the lightning, and the thunder's deafening roar, she leaned from the open window of her sleeping-apartment, and though the darkness was still impenetrable, continued to gaze with intense anxiety, now in the direction of the town of Arden, and now in that of the ruined castle; while Mrs. Dorothea, Lady Darlingford, and Madeline stood behind her, trembling with the combined effect of fear and cold, and shrinking from each fresh accession of the storm's fury, against which they were less defended by the panoply of a fevered mind.

If Lady Arden was at all conscious of the raving of the tempest, it was rather calculated to yield her satisfaction than otherwise, for it was highly favourable to the attempt she knew was even then being made for Alfred's escape.

The window at which she now stood, was the same from which, with an almost prophetic melancholy, she had looked on the night of the festival for the coming of age of her sons. "The pitiless pelting of the storm," too, was such as it had been on that night—but here the parallel ceases: changed indeed was all beside!

From time to time she inquired the hour—waited—inquired again—again waited—and again inquired. "Go, my dear child, go, at any rate," she said at length, looking anxiously at Madeline, who immediately left the room; but in about a quarter of an hour returned, accompanied by Mr. Cameron. He was dripping with wet—covered with mud—and out of breath. Madeline during her short absence, had been watching for him at a glass door which opened from a little boudoir into the lawn; she had just admitted him, and led him up stairs by a back way. On his entering the apartment, the door was cautiously closed by Mrs. Dorothea.

Lady Arden laid her hand on his arm and looked in his face.

"He is safe," he replied, "quite safe for the present."

She sank on her knees, and some seconds were devoted to silent, fervent thanksgiving; when being still unable to articulate, she once more looked up at Mr. Cameron and motioned him to proceed.

"The alarm was given," he continued, "before he was quite clear of the gates; but the cry being, 'Stop the prisoner!' and his appearance being that of Mr. Edwards, the porter did not interfere with his passing out. The turnkeys, it would seem, had not the presence of mind to say at the first, 'Stop Mr. Edwards!' and once outside the gate, the din of the tempest and the darkness with which, though it was past six in the morning, still exceeded that of most midnights, rendered it comparatively easy to baffle pursuit. He soon joined me, where we had appointed, beneath the great beech-tree; for had he been closely followed, he was to have climbed the trunk and concealed himself among the branches, while I was to have darted forward, and so led his pursuers astray: but finding ourselves unmolested as soon as the coast was clear, we proceeded with all speed to the castle. I have lodged him safely in the eagle's nest, and am come from thence this moment."

"Thank heaven!" ejaculated from time to time, was the only interruption. Mr. Cameron's account had met with, "He is so well wrapped up," he added, good naturedly endeavouring to offer what consolation he could; "and the turret is so small and the ivy so thick about it that he will be perfectly dry, and I do not think he will even feel it cold."

"We can see the exact spot from this place," exclaimed Lady Arden, rising eagerly and leaning from the window. "The eagle's nest looks this way."

"Were it not so dark," replied Cameron, also leaning out, "I think you might, the turret is certainly on this side of the building."

"There!" she cried, as a vivid flash gave the remarkable rock, with its crown of towers to their view; while the flickering movement of the lightning seemed, as it were, to lift this principal object from its distant position in the landscape, hold it for a second close to their sight, then drop it into the impenetrable abyss, over which the thunder now rolled in darkness.

"That is it!" continued Lady Arden, her outstretched finger also for the moment rendered visible; "you mean that small projecting tower, which is called the eagle's nest, do you not?"

"Yes, that little turret, jutting-out from the side of the highest of the great towers near the top, and appearing from here not larger than a hand lantern. He must, I should think," he added, "from his present position discern the light in this window."

"Ah, my poor Alfred!" exclaimed the anxious mother. Another flash made the group of ruins and small projecting turret again for a second visible; "if he could have been with us here!" she continued: but the loud thunder rolled, and the hurricane, as her voice issued from her lips, swept its sounds away unheard! The next moment of comparative quiet Mr. Cameron said, in reply to the portion of the sentence he had caught—

"It would have been unwise; for, had he been in this house, some of the servants must have known, or at least have suspected the fact; now the secret of his place of concealment is known only to ourselves."

"You are right—you are right! And we know that there is a fell tiger couching for the prey."

"Perhaps we judge him harshly," replied Cameron. "I think, however," he added, "that we have adopted altogether the very best possible course. But for the extraordinary state of the atmosphere, there should be already some daylight, so that any attempt to quit the neighbourhood before evening again closes in would be madness. Nothing can be more complete, nor at the same time more comfortable, than the place of concealment we have selected; a spot, too, on which you can keep a constant watch without causing any suspicion, the only accessible approach to the ruins being visible from this very window."

While he yet spoke, the grey morning began to dawn. The storm was now gradually lessening, for though the last flash of the lightning had been vivid, the last roll of the thunder had been distant, and the rain had fallen somewhere else. As the dim light increased, therefore, the park, which in fact bounded the whole prospect, presented a most extraordinary aspect; so dense a white, low laying, and still moving mist, covered every ordinary

object, that, as far as the eye could reach the landscape resembled one vast ocean, terminated only by the horizon; while the ruined castle crowning its rocky eminence, being by its great elevation lifted above the fog, appeared alone on the surface of this seeming sea, like the solitary Ark of the Covenant, riding on the waters of the Deluge!

Such, at least, was the sublime idea it suggested to the imagination of Lady Arden, while viewing it with the grateful feelings of the moment, as the refuge of her child.

---

## CHAPTER XIV.

We shall not enter into tedious details of the measures taken to pursue, or endeavours to discover the prisoner, nor yet of the surmises thrown out that his escape had been connived at. Neither shall we claim the sympathy of our readers, for the disappointment of those who flocked to Arden to witness the expected execution; but rather, confining our attention to the more interesting persons of our narrative, go on to say, that through the long hours of that day, whatever were the varied occupations of others, the eye of Lady Arden still kept watch on that lonely turret which held her son, and which (hence its title of the eagle's nest) projecting from the side of the highest of the elevated group of towers, seemed to have its dwelling among the clouds. So conspicuous an object had it become in her sight, that though, as Mr. Cameron said, it appeared in the distance but a speck, not larger than a hand lantern, and was completely enveloped with ivy, yet the most unreasonable dread assailed her lest it should draw the attention and excite the suspicion of every creature who passed by. If but a wandering mendicant crossed the park, her heart would cease to beat the while, and her anxious gaze follow the form, till the pathway leading to the rock on which the castle stood was left behind. Nor did she withdraw affection's eye, nor cease to be the guardian spirit of the spot, till the shadows of evening closing round, shut out the ruins from her view.

Alfred had now, she knew, commenced his journey. Her devoted affection would have led her to accompany her son, but such a step would hamper his flight, and endanger his safety. Even a farewell interview was not to be thought of.

In utter desolation of spirit, therefore, our unhappy hero, even at the moment we are describing, rapidly descended the height on which the castle stood, and strode across the wide extent of park, thus abdicating, as it were, the princely domain of his forefathers, with scarcely a consciousness of where he was, or what his purpose; and when, after pursuing his journey for a time, he became capable of any approach to reflection, his thoughts were all of wretchedness. An exile, an outlaw, dishonoured, beggared, disguised,

he was quitting his native land, probably for ever; unless, indeed, he should be pursued and dragged back, to suffer an ignominious death. He was, it is true, in the very act of escaping for the present this last, and in the estimation of most people worst, because irremediable ill; but accompanying this reflection were sensations which, perhaps, he could not himself have defined. For, since his sentence had been pronounced, notwithstanding the anxious efforts still making in his behalf, he had been strenuously preparing his mind for the most fatal issue, and, with the assistance of the pious Mr. Edwards, endeavouring to wean his affections from things below and to centre all his hopes in heaven. However little understood such feelings may be by those who are engaged in the busy whirl of terrestrial concerns, to those who have lately stood on the brink of the grave, they possess an awful reality not soon to be forgotten.

Compared with views of peace, and rest, and hope so obtained, there was, as a counterpoise to the mere instinct of self preservation, a strong sense of distaste to the weary pilgrimage of life renewed; nor will this seem overstrained, when we remember under what circumstances it was renewed; when we contemplate the universal blight which had fallen upon the fair spring of all his earthly prospects.

At an early hour the next morning, the melancholy ceremony of Willoughby's funeral, which had been so long delayed in the hope of his brother being able to take with honour his place of chief mourner, was at length obliged to be performed in all the hopeless misery of present circumstances. Immediately after the conclusion of the dismal solemnities the family set out for London.

Lady Arden had determined to remain in England till every effort had been made to obtain the reprieve of her son; but, if all failed, to join him under a feigned name at Geneva, the place at which they had appointed to meet; and become, for the remainder of her sojourn upon earth, the kind companion and solace of his wanderings.

Two of her daughters were already married; Mr. Cameron had generously declared his unaltered determination to become the husband of Madeline; Lady Arden had that morning consigned to the grave the remains of poor

Willoughby; Alfred alone, therefore, now claimed all her care, all her tenderness, all the consolation her maternal affection could bestow.

How the affair would have concluded had not our hero made his escape, remains enveloped in mystery; that circumstance might have been supposed to supersede the necessity for a reprieve. It was, however, generally believed, that Lady Arden had received an assurance that there should be no efforts made to pursue her son, or to require him at the hands of foreign powers, but that unless some circumstances in his favour came to light, it would be necessary for him to live abroad, and remain unknown.

---

## CHAPTER XV.

How our hero made his way to, and through France, he never afterwards could clearly call to mind.

Every perception was turned inward; while some mysterious spell seemed endued with the power of compelling his thoughts to go again and again the torturing round of remembrances, every one equally fraught with wretchedness. The miserable end of poor Willoughby—never could that heart-rending scene be erased from his memory—the devotion of his fond parent—such a thought might have soothed; but had he not been, and was he not still doomed to be, to her a source of unparalleled suffering. Then there was another being, whose idea he dreaded to approach—and she had once, for one short period, been all his dream of bliss.

There was certainly but little to draw him from his absorbing reflections in the dull and monotonous plains of Burgundy and French Compté. In due time, however, he left these behind him, and began to ascend the heights above Poligni; but he felt not the invigorating influence of the mountain air. He travelled on through the magnificent scenery of the great military road; yet scarcely saw its precipices, its waterfalls, its forests of beech and pine. At length the magnificent lake itself opened to his view; stretching from Geneva to Chillon, and reflecting, as in an immense mirror, the surrounding Alps with their fleecy region of eternal snows, their glacier cliffs, glittering in the sun-beams, their dark blue zone of wood, rock, precipice, and torrent; and their smiling fertile base. He completed the winding descent of the Jura, commanding the whole way to the very verge of the lake, a full view of the fairy scenery, the fertile slopes, the glowing vine-yards, the cornfields, orchards, gardens, towns, villages and villas; the wooded brows, tranquil vales, and sparkling streams, of the enchanting Pays de Vaud; yet he felt no pleasurable sensations arise: if the splendour of effect in some measure aroused him, it was rather to a state of more active suffering than before; as though the wilderness within were rendered more desolate by comparison with the paradise without.

He now proceeded by a beautiful drive along the water's edge to the gates of Geneva; and here found the usually vexatious delays, respecting passports, &c., peculiarly annoying, from the degrading consciousness of disguise.

When he succeeded in effecting his entrance, and had retired to rest, excessive fatigue, both of mind and body, brought sleep; but no sooner had his weary eyelids closed, than horrors assailed him.

The Rhone flowed with a rapid pace beneath the very street and house in which he had taken up his abode for the night. The pleasing murmur of its waters became to his dreaming fancy the tumult of the congregated multitude, around the foot of the scaffold, on which, with that extraordinary certitude which sometimes accompanies the visions of disordered slumber, he thought he was about to suffer an ignominious death.

The agony of the moment awoke him, and he slept no more. But he felt a stronger and more grateful sense than he had hitherto done, of the blessing of having been preserved from such a fate; and even hope, under the healing influence of a thankful spirit, in some sort revived. The foul blot might be yet removed; he might yet be restored to the love and respect of all good men; he might yet, though he could never more know happiness himself, cease to be a source of misery to the best of parents.

Fearful, that among the many English at Geneva, there might be some to whom he was personally known, he remained in the house the whole of the following day. In the evening, however, tempted by the balmy air, the weather being unusually fine for the season, he determined to go on the lake; a situation, in which he should of course be less liable than on shore to meeting other persons near enough for recognition.

He did so accordingly. The sun had, a short time since, sunk behind the Jura, while a lingering beam still crowned, as with a regal circlet, the stately brows of that monarch of the scene, Mont Blanc. The hour was calm and beautiful; the shores were fairy land; the lake a sea of gold; while its shining surface was dotted with numerous vessels of every description, gliding along so smoothly, that but for the changes which gradually became apparent in their relative positions, they might have seemed to have stood still.

One of these in particular, with a spell-like power, drew the attention of our hero, possibly from unconscious sympathy with human misery, as it seemed to be in some sort the scene of sorrow or of suffering, for beneath an awning, a portion of the curtains of which were drawn aside, was partly visible a couch, or bed, on which was laid a recumbent form, to all appearance motionless; while the other figures in the boat were evidently only the attendants on this principal one.

The boatman, observing the direction of our hero's eyes, began to tell him in French, a tale possessing much of the sentimental, of which that language, when it does not degenerate into affectation, is so good a vehicle. He expatiated on the youth, the beauty, and the apparent wealth, forlorn state, of this mysterious lady of the lake who was dying, he said, in a foreign land, surrounded by strangers and servants and without one friend or relative near to receive her last sigh.

It was by order of the physician, he added, of whose practice he, by the way, by no means seemed to approve, that she was brought out thus on the lake at all hours, and almost all weathers, more, 'tis to be feared, to give notoriety to the doctor than health to the patient.

While he was speaking, the boat which contained the invalid began to come towards them, on its way to the place of landing. At the same moment a slight breeze arose, and lifting the curtains of the awning on both sides simultaneously, kept them straight out, with a gently fanning movement, like the extended wings of some gigantic bird. Its appearance thus remarkable, its progress barely perceptible, it continued drawing nearer and nearer while the narrator went on, winding up his story by saying, the report was, that this beautiful lady had two suitors in her own country, who were brothers; and that the one had murdered the other for jealousy, but his crime being discovered, he had been brought to trial, and executed: so that the poor young lady might well be disconsolate, having thus lost both her lovers. By this time the approaching boat had come so close, that in passing, it slightly grazed that in which our hero sat.

Alfred's gaze had for some time been intense; his cheek now blanched; unconsciously he grasped the arm of the boatman.

Pale, beautiful, to all appearance lifeless, the form which lay beneath the uplifted awning in the passing boat was that of Caroline. The eyes were closed, but the faultless features, in their angel-like expression, were still unchanged, presenting a model of perfect loveliness reposing in the sleep of death: while the silent attendants, with their common-place, though solemn visages, looked like the rough stone figures of mourning mutes coarsely carved around some Parian marble monument.

---

## CHAPTER XVI.

To account for the appearance of our heroine under such peculiar circumstances, we must look back to secondary events, which latterly we have not had leisure to notice.

Immediately after poor Willoughby's abrupt departure from Montague House, Lady Palliser and her daughter had set out on their continental tour, in which it was supposed by the friends on both sides, that he was shortly to join them. During their journey, they had either not chanced to meet with, or at least not happened to read with any degree of attention an English newspaper. One, however, was laid on their breakfast table the morning after their arrival at Geneva; it was that which contained a summary of Alfred's trial, conviction, and condemnation to an ignominious death, for the wilful murder of his brother. From the circumstances of Lady Palliser being out of England, on the constant move, and consequently not associating with any one, her ladyship had not heard before even of such an accusation having been brought against our hero, yet she glanced over the account of the terrific affair with a countenance perfectly unmoved; and when she had finished the statements, merely handed the paper across the table to Caroline saying, in the most careless tone imaginable,

"It was very fortunate that you were not married to either of them."

Caroline, wondering what her mother could mean, took the paper in silence, and began to read the part indicated by the manner of folding. Lady Palliser sipped her coffee without even a look of inquiry towards her daughter; but had there been any one present to have noted the emotions marked on the countenance of Caroline, they would have seen first, a faint glow as the names met her sight; then the gradual retiring of the same; then the unconscious parting of the lips and holding of the breath; next a quickened respiration, a flickering colour, and a countenance full of indignant expression.

Soon after this profound attention seemed to still every pulse, for the paper which before had visibly vibrated with each throb of the heart, no longer

stirred, while every vestige of the lines of life retired even from the lips: the eyes alone moved, as eagerly they traced, from margin to margin, line after line. Suddenly a rush of crimson covered the face and neck, a piercing cry escaped the lips, and Caroline fell senseless to the floor, having become again pale as a corpse.

It was some hours before she showed any returning signs of life, and when she again opened her eyes it was evident, from their piteous expression, that consciousness, whether of woe or weal was gone.

Subsequently, however, though she still noticed no other object, she manifested such strong symptoms of terror at the approach of Lady Palliser, that the medical attendant thought fit to recommend her ladyship not to enter the apartment.

Lady Palliser, from whom patient attendance on sickness or suffering was not at any rate much to be expected, soon began to get exceedingly tired of the whole affair. She was also provoked that her daughter's name should, however blamelessly, be implicated with that of a family on whom such disgrace had fallen; for though Alfred's escape was by this time known, the stigma was still the same; he was still under sentence of death—he was still believed to be a murderer. Caroline's sudden illness too had made matters worse; for its supposed cause had got abroad, and having spread from the English to the natives, became the universal topic of conversation with high and low. That this would be still more the case in England her ladyship was well aware; she determined therefore not to return thither till the business should be in a great measure forgotten; in the mean time to proceed on her tour, leaving her daughter, who was unable to travel, at Geneva, with of course a suitable establishment of sick-nurses and servants, and attended, unluckily, by some medical personage who had acquired a questionable reputation nobody knew how, and whose opinion therefore Lady Palliser, with her usual whimsical irrationality, chose to consider the best *medical advice* within reach; and to whose care, without weighing the subject further, she accordingly committed the reason and the life of her only child. Whether her ladyship would have taken the unfeeling step of proceeding on her journey, had her presence afforded consolation to the suffering Caroline, it is impossible to say; but, as her sage adviser still recommended her to

refrain from seeing his patient, she appeared to consider herself at liberty to follow her own devices.

---

## CHAPTER XVII.

Having thus explained how it happened that our heroine was found at Geneva in the forlorn state described, we must now return to Alfred. He followed the apparition of Caroline, saw her couch lifted from the boat to a kind of carriage which was in waiting on the shore, landed himself immediately, and though incapable of plan or purpose, pursued the carriage. It stopped at a villa at a little distance. He saw Caroline lifted out, and carried into the house. Impelled by an uncontrollable impulse, and too much agitated to think of forms, he entered the hall with the servants, of whom he made some incoherent inquiries. They seemed scarcely to comprehend him. A person passed hastily in almost at the moment and entered a sitting-room which opened into the hall, and into which the couch with the invalid had just been carried.

"It is the doctor, sir," said a servant, with a puzzled air, which seemed to infer, he can probably answer you better than I can.

Alfred followed eagerly to the door of the room, and stood there some seconds in breathless anxiety. It opened—the *soi-disant* doctor was coming out, but drew back, as it were, to make way for our hero; who, from his evident and pitiable agitation, and his eager inquiries, he seemed to take for granted, was some one of the lady's near relations arrived at last, and of course entitled to enter the apartment of the invalid. Laying apparently asleep on a sofa visible from the door, Alfred could now discern Caroline: yet, though at the time in no state of mind for reflection, he so far felt himself unauthorized in his intrusion as to give an air of hesitation to his manner.

"You can come in, sir," said the doctor, "there is no danger, I am sorry to say," he added with pompous solemnity, "of waking the patient."

On hearing these alarming words, Alfred rushed to the side of the couch in so wild a manner, that the doctor, quite aghast, followed, and laying his hand on his arm, said, "You mistake me, sir: there is no reason to expect immediate dissolution; my meaning was, that you need not be apprehensive

of interrupting the slumbers of the patient; her state being unhappily, not natural sleep, but a species of trance, becoming, I feel it, notwithstanding, my painful duty to say from its prolonged duration and the daily diminution of bodily strength, every hour more and more hopeless. From, in fact, the first moment of her sudden seizure up to the present time, she has not shed one tear, spoken one word; nor, as we have reason to believe, though in this constant state of apparent unconsciousness, ever actually slept; for, at any startling or unusual sound, her eyes have been observed to open, though but for a second."

While the doctor, who was fond of hearing himself talk, had been thus holding forth, Alfred had stood gazing on the pale unconscious sufferer, in an agony of grief and compassion.

Pity is itself a gentle, an endearing sentiment; but when claimed by a being we already love, who shall paint the going forth of the whole soul, in the blended sympathy! If there is an earthly feeling pure from self, worthy of heaven, it is this! Had Alfred encountered Caroline in health, amid scenes of pleasure and of gaiety, himself free from the disgrace and ruin which now attached to him; nay, with a knowledge that her seeming want of truth had been but obedience to the tyrannical commands of a parent; that her heart was still his; that, in short, every obstacle to their union was removed by the death of poor Willoughby;—how soon, in such a case, he might have been able to have separated thoughts of her and of happiness from the heart-rending remembrance of his brother; at what distant period of time he could, in short, have sought a paradise on the very shore where that brother had become a wreck, it is impossible to say. But when instead of all this, her idea was presented to his mind under circumstances so new, so terrible, so far removed from selfish joy, which, when mingled with thoughts of Willoughby, would have seemed almost a sacrilege; then it was that an overwhelming interest in her fate took possession of his whole soul unresisted, consisting of fears, not of hopes; and that soul full of misery, was almost paralysed by the memory and presence of sorrow. He continued to gaze, till a sense of the most appalling dread, despite the assurance of the doctor that there was no immediate danger, crept over his heart, so much did the perfect stillness of the lovely features resemble that of death. His terror momentarily increased—he bent—he knelt—he listened in breathless anguish, till the throbbing of his own pulses might have been heard, but he

could catch no sound of respiration. He looked up with a sort of despairing yet questioning expression in the doctor's face.

"I by no means," said the authority so appealed to, "apprehend, as I have already stated, any immediate danger. This species of trance has continued without intermission, ever since the first rash communication of the fatal intelligence." Then, fond of hearing himself talk, and possibly believing that he spoke to a near relative, acquainted of course with all the circumstances, he continued to exhibit his powers of oratory thus:

"The shock was, I fear, altogether too much for any sensitive mind; what with the abrupt mode of communication, and the manner of the gentleman's death, so terrible—murdered they say, by his own twin brother!"

"No, sir!" exclaimed Alfred, starting up with sudden fierceness, and grasping the doctor's arm, "he was not murdered by his brother; and that," he added, with an altered tone and manner, clasping his hands, and raising his eyes to heaven, "when her spirit awakes in the realms of the blessed it will know."

The conversation up to this point had been conducted in the mysterious whispers of a sick room, but Alfred's voice, from excess of excitement, in the last sentence unconsciously assumed its natural key. As he concluded his apostrophy to Heaven, his eyes, which had been uplifted in the fervour of devotional feeling fell again on Caroline. Her's were wide open, and fixed on him, with an almost wild expression of terror and bewilderment!

In a moment more, the crimson rash had, for a second, crossed her brow; the piercing cry escaped her lips, and she had fallen again into that totally inanimate state, which had characterised her first seizure, and distinguished it from the sleep-like trance in which she had subsequently lain.

All was instant confusion and dismay. Alfred, almost wild with terror, raised the drooping head which had slid from the pillow, supported the fair cheek against his bosom; and chafed, now the temples, now the hands, mechanically, endeavouring to obey the directions of the doctor, while his own hands trembled, till they could scarcely perform the task assigned them.

The doctor himself, too, seemed much alarmed, and somewhat taken by surprise; he tried all the means of restoring animation he could think of, but in vain. At length he began to look very serious indeed. To Alfred's frantic adjurations, half question, half entreaty, as though the doctor's words could reverse the decree of fate, he replied repeatedly, and with decision, that all was over. "There is not now," he added, "the strength to rally there had been at the time of the first attack."

A mournful silence followed: all, as with one consent, discontinued their efforts. The doctor folded his arms. The very attendants stood for a considerable time quite motionless.

Alfred was kneeling beside the couch, in the attitude he had taken, while striving to render assistance to her, who was now no more. At length the nurses, anxious in their officious zeal to perform the duties they considered their province, drew near, removed the head of Caroline from his supporting shoulder, and laid it on the centre of the pillow, then withdrew the hand he still grasped in his, and arranging the delicate fingers, placed it by her side; while the doctor approaching, raised our hero, and led him from the room, attempting, as he did so, the usual common-places of conversation: it was an event which had been expected for some time. There was so little hope of ultimate recovery, that it might be considered a happy release; for even had her life been preserved, her faculties could never have been restored.

As for our hero, he heard him not; all his thoughts, discoloured and distorted by late events, were desperate. "It was well," he inwardly ejaculated, "yes, it was well—life was misery—death a refuge—why should any one desire to live?"

The doctor, the while, led Alfred through the hall, assisted him into his (the doctor's) carriage, which stood at the door, and begged to know whither he desired to be driven. The question had to be repeated more than once before a murmur, from which something like the address was at length collected, could be drawn from Alfred.

---

## CHAPTER XVIII.

The movement of the carriage, and the necessity of descending from it, having aroused Alfred from the first paralysing effects of his grief, he now paced his apartment rapidly, and continued to do so almost the whole of the night; too much absorbed by his miserable reflections, to be conscious of the bodily fatigue he was thus incurring. Yet it was impossible to be still! Was she indeed dead?—was the question, he again and again, asked himself. Then, with indescribable agony, he recalled the bewildered terror of those dear eyes during the single moment they had met his. How short was the period which had since elapsed; she was then in life—was it possible! could she be already gone for ever? A lingering feeling, in some sort allied to hope, though altogether irrational, still struggled with his despair. It is after waiting in vain, as it were, for a reprieve from fate, that sorrow for the dead seems gradually to reach its climax. It is not in the first hour of bereavement that we can comprehend our wretchedness; so difficult is it to believe, that in a few short moments, the great, the awful change, has taken place and eternity for a fellow-mortal, who trod the path of earth with us but now, commenced. Then would he view, with stern despair, the mysterious union, by which his own fate, the fate of poor Willoughby, and that of Caroline, seemed linked together in misery.

"But she is now at rest," he would add, and after dwelling for a time on this idea, gentler emotions would arise; and he would strain his mental vision to behold the shadowy regions of that "bourn whence no traveller returns," as though tenderness thus sought for some locality in which to picture to itself the cherished image of the being beloved.

Night passed away, and morning came, but its light brought with it the unsufferable thought, that even now the busy preparations of the living, to rid themselves of the dead, were in all probability being commenced!—Once more—yes, once more, he must behold her! And then he would think of his poor mother, and patiently await his own release. As he formed this resolve, he was crossing his apartment, to descend into the street and hasten back to the villa, when the door flew open and Lady Arden entered.

"Alfred! my son," she exclaimed, "you are justified!" unable to articulate further, she wept passionately, but her tears flowed over a countenance radiant with joy.

As the words, "you are justified," sounded in the ear of Alfred, relief from ignominy swelled his heart with a proud and worthy satisfaction, which, under any other circumstances, would have taken the lead even of his affections. But now, instead of eagerly inquiring what had occurred, he said, with solemn tenderness, while affectionately returning the maternal embrace, "I am not ungrateful to Heaven, or to you."

Lady Arden gazed at the mournful expression of his countenance, and added anxiously, and somewhat doubtingly, "When time, my son, shall have passed a healing hand over the sorrow you feel for your poor brother, I shall see you, I trust, yourself again; and for my sake—and for the sake of others who love you, quite—quite—happy—at last. For this misery," she added, speaking slowly, and still watching in vain for the dawning of pleasurable feeling on his still and saddened features; "this misery has been all occasioned by the tyranny of Lady Palliser;—she whom you both loved has ever been, and is still faithful to you.—She confided in poor Willoughby at the last, and entreated him to shelter her from the anger of her mother, by withdrawing his addresses. He obeyed her wish—but—his mind lost its balance in the effort. There is hope then—surely there is hope—that Heaven will deal mercifully with him who had not reason for his guide when he sinned."

Alfred looked in her face while she spoke. When she ceased, his lips attempted to move but no sound proceeded from them. Every power, mental and physical, had been strained beyond frail Nature's capability of endurance. His head rested, and he sunk on a sofa in nearly a swooning state.

At this moment the doctor most opportunely entered.

---

## CHAPTER XIX.

While the Doctor is exerting his skill in the endeavour to revive our hero, we shall go back and give some account of the events which led to the fortunate result proclaimed by Lady Arden on her entrance.

We have already mentioned that at an early hour the morning after Alfred quitted his place of concealment in the ruins, the long-delayed funeral of Willoughby took place; immediately after which the family set out for London.

Geoffery, though he knew himself to be a suspected and unwelcome guest, yet had thought it necessary, for appearance sake, to attend. He had done so, and spent some hours subsequently at Fips's, awaiting the departure of Lady Arden and suite from the mansion, upon which it was his intention to take immediately formal possession of a place of which he had so long desired to be the master. The last of the carriages containing the family party had passed about an hour, when Geoffery mounted his horse and was riding through the principal street of Arden on his way to the park, on the adjacent woods of which he was so much engaged looking with exulting *pride*, that he did not perceive a waggon laden with household furniture which happened to be passing, till it came so near that to avoid it he was obliged to ride close to the foot-path.

There chanced to be advancing at the moment, along the said foot-path, a decrepid old man, a sort of village miser; who, though suspected of possessing secret hoards, lived alone in a hovel—denied himself the necessaries of life—and looked like a beggar. This man had enjoyed for many years, as a sort of privilege, the almost exclusive sale, at the moderate charge, as he expressed it, of one halfpenny each, of all murders, trials, last dying speeches, ballads, valentines, &c. &c. &c.

"A full and true account of the trial and conviction of Sir Alfred Arden, for the cruel and most unnatural murder of his brother, the late Sir Willoughby Arden;" and also of his miraculous escape from prison on the morning on which he was to have been executed, had been prepared for this species of

sale; but from respect to the feelings of the family had not hitherto been publicly hawked about. As all its members, however, with the exception of Geoffery, whose sentiments were tolerably well understood, had that morning taken their departure, such delicacy was no longer deemed necessary. Accordingly, the ancient ballad-monger, fearful of being anticipated in his market, was commencing operations. He had just vociferated, "Interesting account, &c. &c." and at the precise moment that Geoffery, in making way for the waggon rode close to the foot-path, was in the act of raising his arm to display on high his large-lettered merchandize, when his hand coming in contact with the nose of Geoffery's horse the glaring white appearance, and sudden rustling noise of the unfurled paper so startled the animal, that he backed, plunged, and reared up against the waggon, entangling Geoffery amongst the legs and arms of the tables and chairs with which it was heaped, and which, lifting him from his saddle, let him down so close to one of the wheels, that it went over his head and crushed it to atoms. He was taken up and carried into an adjacent public house, of course quite dead; while almost every one who had been in the street at the time of the accident, crowded immediately into the common room where he was laid.

It so happened that the master of the house had once incurred very ugly suspicions respecting picking of pockets; this was a point therefore on which he was now particularly jealous of his honour. When the spectators therefore had satisfied themselves as to the nature and extent of the injuries received by the deceased, and were about to disperse, mine host uplifted his voice, and requested that some one would remain to examine the contents of the gentleman's pockets, that his house might come to no discredit in the business.

Accordingly, two persons consented to do so, one an apothecary, who had been called in to pronounce whether or not a person who had been guillotined by a waggon wheel, were quite dead; the other, Mr. Danvers, High Sheriff for the county. He had attended the funeral, and was passing through the town on his way home. He was the warm friend of Lady Arden, and felt a strong persuasion of Alfred's innocence.

The money in Geoffery's purse was counted, and a pocket-book found which was opened, to ascertain whether it contained bank-notes; Here Mr.

Danvers perceived a letter, the address and memoranda on the outer fold of which rivetted his whole attention. They were in the late Sir Willoughby Arden's hand-writing, and ran thus—"To my dear brother, Alfred Arden, containing my dying requests to him, together with my reasons for having resolved to put a period to my existence."

It was very evident that this letter, though open, had never reached Sir Alfred's hands, or it must have been brought forward on the trial; there seemed therefore to be no doubt that Geoffery Arden, however it had come into his possession, had suppressed it with the most diabolical intentions. To hasten therefore immediately with the precious document, in pursuit of Lady Arden, and lay the affair in due form before the Secretary of State for the Home Department, seemed to be the obvious course, and was accordingly adopted by Mr. Danvers with all possible speed.

---

## CHAPTER XX.

The packet found by Mr. Danvers was the same which, it may be remembered, was lifted from a table in Willoughby's apartment by Geoffery, while Alfred, to meet whose eye it had been thus conspicuously placed by his poor brother, was too much absorbed in grief to notice what was passing.

The peculiar circumstances attendant on the death-scene, and the certain knowledge thus obtained, that poison had been taken, and would, therefore, on opening the body be found, suggested to Geoffery's evil mind the first faint glimpses of the diabolical scheme which so many after circumstances so unexpectedly favoured. Had there been a fire in his apartment that night, he would for security have certainly burnt the packet; but it fortunately happened that there was not, and so agitated and occupied was his mind in the contemplation of the very possibility of compassing at once the hideous crime and enormous gain, which he was balancing one against the other, that the idea of destroying the dangerous document by means of his candle never once occurred to him. Accordingly, when he had sufficiently considered its contents, he placed it in his pocket-book. After this, he more than once took it out, with the intention of consigning it to the flames, but when in the very act his hand was stayed by more than one consideration. In the first place, there was a kind of bequest to himself; and if the accusations against Alfred came to nothing, he should want the sum very much; then he sometimes felt a dread, that by a bare possibility, he might himself,—as having a remote contingent interest in the death of Willoughby, and having arrived too that very night at Arden,—be accused of being an accomplice of Alfred's; and in either case this packet laid down in some of the apartments, would be picked up, and being supposed to have hitherto merely lain unnoticed, both clear himself of all suspicion and secure his bequest; for though this bequest was not left in a binding form, he had no doubt that Alfred would religiously make it good. No place, however, seemed safe enough for keeping this important document but about his own person, and accordingly he so disposed of it; which serves to account for its being found in the manner described.

The packet itself presented a melancholy picture of poor Willoughby's disordered state of mind, brought down somewhat in the form of a journal, and with a kind of method mingled with its wildness to the very evening of his death. In proof of the strange blending of rational considerations, there was a sort of distribution of his personal property; for besides the bequest to Geoffery, already alluded to, there were kind gifts to his sisters, his mother, his aunt Dorothea, and to several old servants and pensioners.

Alfred, however, was his main object; the tenor of the whole letter breathed the most devoted tenderness towards him, mingled with a madman's notion, that he was about to perform an heroic act, in removing the obstacles to his happiness. It entreated Alfred not to grieve for him—he was only flying a misery he could not endure; seeking a resting place he longed to find. Why should not all those who remained behind be happy—quite happy, and never think of him who could so well be spared—who never should have been born—who seemed to have been called into existence but to stand in the way of others, and be himself wretched!

"Yet I know that you will grieve for me, Alfred," it continued, "and the thought of how much you will grieve sometimes makes me shrink from seeking the rest I long for. But it will be for a time only, and then you too will be happy. Yes, you must be happy, Alfred!"

Caroline's letter was inclosed in the packet, and some comments made, in a strain of forced, unnatural calmness, on Lady Palliser's cruel policy. While the whole, which seemed to have been written at many different periods, concluded with a sort of separate part, dated the day of the evening of his death; detailing minutely how he had at length possessed himself of some arsenic, and declaring his intention of that very evening putting an end to the harrassing struggles of his mind, which he here describe wildly, as pursuing him every where—goadng him on—hunting him down—making rest or peace on earth impossible.

"Forgive me, then, dear Alfred," he concluded; "forgive my quitting you thus; for I am weary, and long to sleep, though it were in the grave! Except that short moment when I closed my eyes on your kind bosom, I have not slept I know not when."

This, the dying memorial of poor Willoughby, was but a melancholy vehicle for joyful intelligence to Lady Arden. In her mind, however, at such a moment, there was room but for one idea—Alfred was safe! Even her pride in him, which had mingled with despair, was forgotten in tenderness.

She left all the care of his public justification, with the necessary forms for his restoration to his right, in the hands of Mr. Danvers and Lord Darlingford; and though, as a precaution lest Alfred should lose one moment of the relief of mind such intelligence was calculated to bestow, she had dispatched, at the first instant, an express, bearing in her own writing the three words, "You are justified." Nevertheless she had followed her own messenger with so much expedition, that she overtook him at the gates of Geneva, awaiting their being opened; and thus became, as we have seen, the first to announce to her exiled son the happy change which had taken place in his circumstances.

While her ladyship was thus occupied, the townspeople of Arden, impatient to display the returning tide of their affection and respect towards their young landlord, were illuminating every pane of glass they possessed, and lighting bonfires on every rising ground in the neighbourhood, in honour of his acquittal; while at the same time their indignation against Geoffery knew no bounds. His motive in suppressing and concealing Alfred's letter spoke for itself; and so strong was the general feeling of abhorrence which it excited, that the night after he was buried, his body was disinterred by the mob, and placed on a gibbet on the road-side, between Arden and Arden Park. His coadjutor, too, Mr. Fips, was blamed even more than he deserved, if that indeed were possible: that is to say, he was universally believed to have been a party to the suppression of Willoughby's packet; a belief engendered, and, in a great measure justified, by his being Geoffery's right-hand man on all occasions, and still more by the active part he had taken previously to and on the trial, as well as by his own general villany of character.

Accordingly, during the illuminations for Alfred's acquittal, the mob began by smashing every window in Fips's house; and hatred of Gripe, as he was called, being a common cause, those who had commenced the attack were soon joined by so many who had a personal feeling of revenge, founded on a lively remembrance of ruin entailed on themselves and their families by

his means, that before morning they literally left not one stone, or rather one brick, upon another of Fips's dwelling; while himself and his daughter narrowly escaped with their lives, without being able to carry with them a single paper, or a vestige of property of any kind. What was of value found plenty of customers, who thought it no robbery to take back a little of their own; and as to the parchments, &c., a sagacious ringleader proposed that they should all be emptied out at the foot of the market cross; that so, when there was light in the morning, every one might come and choose his own. Thus did many a man get back his documents without being compelled to pay the unjust and enormous bill for which they were held as security; whilst every thing in the shape of bill, book, or account standing against any individual, was carefully consigned to the flames. All the town, in short, felt it more or less a blessing that the hornet's nest had been destroyed. As to the authorities, they had themselves, some of them, felt the gripe of Mr. Fips in their day: after, therefore, every step *they* judged proper was duly taken to discover who had been the perpetrators of the late riots, it was decided, at a public meeting held for the purpose—"That the very *unjustifiable* outrages which had been committed on the night of the — of —, 18—, could not be *brought home to any particular individuals*."

---

## CHAPTER XXI.

It was evening; a cheerful mixture of twilight and firelight filled the apartment in which our hero lay, slowly recovering from a brain fever of many weeks duration.

He had been long delirious, and as yet had not recognised the friends who were around him, or been conscious of any event which had occurred since the morning on which Lady Arden had arrived at Geneva. But his crisis was now past, and much was expected from the peaceful and profound sleep he had enjoyed for nearly the whole, both of the last night and of the last day. A group of itinerant musicians had stopped beneath his window, and were performing some simple strain, which, though possibly conducive to his awaking just at that moment, fell on his half conscious ear with indescribable sweetness. Gradually his eyes began to open: at first but in an imperceptible degree; yet, through the still veiling lashes he now saw confusedly, visions, as of angels, hovering around his pillow. While a countenance which bent over his, watching, as it were, his slumbers, seemed to grow each moment brighter and brighter, till, for one second, he distinctly beheld (or did he dream), the face of Caroline! It disappeared instantly, and was succeeded by that of his sister Madeline; but the shadow of a form glided round the curtain which the eye of Alfred anxiously followed.

It was Caroline; she had gone to announce to Lady Arden Alfred's awaking.

Lady Arden had been also ill herself, and was not yet able to bear much fatigue: she had, therefore, lain down while Caroline and Madeline cheered each other's watch in the sick chamber. The music in the street had alarmed our youthful nursetenders, lest it should awake their charge: they had raised their taper fingers, and thus asked each other by signal, whether they should send to have it stopped; while, as a preliminary movement, Caroline had glided to the bedside to note its effect upon the sleeper. She had stood a few seconds, marking as well as the imperfect light would permit, that his eyeballs seemed to move tremulously beneath their lids. Anxious to

ascertain the point, she had bent closer and closer to the pillow; when, Alfred's eyes opening as we have described, she had disappeared.

Madeline, as she took the place of the apparition, which had thus quickly vanished, found Alfred making a feeble effort to draw aside the opposite curtain. But he was quite unequal to the task.

"It was—it was she—" he faintly murmured, "Was it not? tell me, Madeline!"

"Yes it was, dear Alfred, but you must not speak! she is quite well."

Fortunately, his extreme bodily weakness did not admit of any very violent paroxysm of feeling. His recollections of the past too, were as yet but confused; so that the overpowering intelligence that Caroline was still living—was near him—was kindly attending him in sickness, came not upon him at once in its full force, but grew with his growing perceptions.

"Where is she gone, Madeline?" he at length breathed, in a scarcely audible whisper.

"Only to my mother's room," replied Madeline, in accents scarcely louder.

"And tell me where we are?" he added, after another pause.

"At Geneva, dearest Alfred. But you must not speak."

"At Geneva!" he repeated, then lay still a very long time, as if endeavouring to recall past events: and she noted with alarm, that pale though he was, after his long illness, a faint flush, was overspreading his brow. He feebly grasped her arm, and looked in her face with an earnestness of expression which she perfectly understood.

"No! no!" she replied, "she was only ill—faint—but she is now quite well, but indeed, you must not speak, dearest Alfred."

"Madeline! is all this true?"

"Yes, quite true: and now, dear Alfred, you must lay still till the doctor comes."

He tried to obey her for a time.

"I cannot, Madeline," he at length whispered, and then, though much exhausted, he continued in broken accents, "the desire—to know—how—it has all happened—will hurt me more—than listening to your—sweet—voice.—So tell me all—and then—I will be composed."

Madeline, judging that of the two it was better he should listen to her than persist in endeavouring to speak himself, replied in the softest of whispers, shading the light of the fire from his face:

"Why, when my mother saw that she had both you and Caroline to nurse, she wrote to us to come here. But, by the time we came, we found dear Caroline so much recovered, that she was nursing both you and my mother, who had then become ill herself from fatigue. But she is now quite well again," she added, seeing Alfred look around. "And she has written to Lady Palliser, and obtained her permission for Caroline to stay with us while we remain abroad, that she may travel home with our party. And now, indeed, I will not speak another word, so you must lay still."

Here the appearance of Lady Arden, and Aunt Dorothea, and soon after of the doctor, relieved Madeline from the difficult task of keeping her refractory patient in order.

---

## CHAPTER XXII.

From day to day, as Alfred became stronger and less unfit for prolonged conversation, his kind parent had detailed to him all the interesting particulars attendant on the illness and recovery of our heroine.

Her deep swoon had not, either at the first or second time of seizure, been a mere common faint; but had, on both occasions, more especially the last, partaken of the nature of those trances in which persons have been known to present for days so completely the appearance of death, as to have been carried by grieving relations to the grave; yet to have subsequently recovered, and lived for many years. Whether a more skilful doctor might, in Caroline's case, have detected the difference, we cannot pretend to say.

Soon after Alfred had been led away from what he then believed to be the chamber of death, the doctor had also taken his departure. When, however, he returned at an early hour in the morning, to give some necessary orders preparatory to the funeral, he was, to his great surprise, met on the steps by a messenger, who was just coming out to inform him that the patient had exhibited signs of returning life.

He entered the sick chamber, administered restoratives, &c., &c., and in a short time had the satisfaction of seeing Caroline open her eyes while, instead of closing them again almost instantly, as on former occasions, she now, though too feeble to move her head on the pillow, looked all round the apartment with evident anxiety, then fixed her gaze on the door, as if watching for some expected sight or sound.

It was to announce the pleasing intelligence of the revival of his patient, that the doctor entered Alfred's apartment at the critical juncture described.

His communications ultimately led to Lady Arden giving to Caroline every moment and every thought she could spare from Alfred. While the kind attentions of such a friend, with the explanations which of course followed, supplied at once the soothing of considerate regard and the motive to live; and thus, with the assistance of some rational medical adviser, called in by

Lady Arden, wrought a recovery which, to those unacquainted with the particulars, seemed almost miraculous.

But though Caroline, from the time of the first seizure caused by the communication of the fatal intelligence, up to that of the second, occasioned by the unexpected apparition of Alfred, had lain in a state supposed to border on insensibility; her actual state, during the period alluded to, had been rather that passive of despair, characteristic of a being so gentle by nature, so friendless by circumstances, that her mind, overwhelmed and unsupported, was incapable of an effort, and had sought a sort of refuge from the agony of carrying its burden of wretchedness through the ordinary round of life in this total inaction, this entire quiescence, this living death, while awaiting that actual dissolution, which, though she had not the wilfulness nor the wickedness to accelerate, she hoped would soon arrive. She spoke not, wept not, and the light of day being oppressive to her broken spirit, opened not her eyes, except when some sudden or startling sound caused the instinctive movement. At such times they met no object to awaken kindly associations, or call the affections back to life; the faces they beheld around were those of strangers, the very nurses and servants in attendance having been hired for this occasion, Lady Palliser having taken with her those she had brought from England. Poor Caroline's eyes, therefore, languidly closed again without noticing any object.

The general impression on the minds of the persons by whom Caroline was surrounded was, that the shock her mind had received was occasioned by the intelligence that the gentleman to whom she was engaged to be married had been murdered. The subsequent accounts, therefore, of the escape of the murderer, it never accrued to them that it could be any consolation to her to be informed of. On the contrary, they would have judged it highly imprudent to have forced any circumstances connected with the fatal subject on her consideration. Had there been an affectionate or intimate friend in attendance they might have better understood the feelings of the sufferer. But none such was near. Poor Caroline, therefore, up to the moment that the suddenly-elevated voice of Alfred caused her to open her eyes, and beheld him standing beside her couch, remained under the frightful impression (though in her own heart confident of his innocence), that he had suffered an ignominious death for the murder of his brother.

From total want of energy she sometimes wavered from her, and, at other times took no notice of, any food presented to her; but being too meekly submissive in her nature, for the wilful resolve of committing suicide by abstinence, she did not offer any resistance to the efforts of the nurses to preserve life by administering, from time to time, a spoonful of liquid-jelly, whey, or gruel.

Between mental suffering, therefore, and want of proper sustenance, her physical strength was thus, from day to day, gradually giving way. As for our friend the doctor, he was in too great request to run in and run out again; had making discoveries, therefore, been his fort, which it was not, he could not have spared the time: so that poor Caroline, but for Alfred's visit to Geneva, might have faded away from apparent into real death, ere any chance had conveyed to her the escape, and finally the acquittal of our hero.

---

## CHAPTER XXIII.

Alfred's recovery after this period was rapid, which enabled Lady Arden to remove shortly to a beautiful villa, situated on the borders of the lake, amid the romantic enchantments of the Pays de Vaud; and commanding, on the opposite banks, the bold and majestic scenery of the Savoy mountains, with their snow-clad tops and stupendous cliffs, thousands of perpendicular feet in height.

It was in this spot, itself an earthly paradise, that our gentle heroine enjoyed the first really happy days she had ever known. No longer the solitary unloved object of her mother's capricious tyranny, she seemed to be already one of the kind and united family, in the bosom of which she had thus found a shelter,—already to form the very centre of a little circle of affectionate friends. For though, in the exciting moment of necessity, poor Caroline had been able to render some assistance to others, at least had been willing to think so, she was not yet strong herself; so that, as Alfred got quite well, she became the especial object of the care and indulgence of all. The attentions, the anxieties, the precautions for her health and comfort, of not only Lady Arden, but also of kind Mrs. Dorethea, were truly parental; while Madeline's companionship supplied to her that dear, familiar tie, she had never known before—that of a sister: and Alfred was brother, lover, friend—all in one. In every ramble his arm was her support; in every excursion, he it was who led the mule, or shared the seat, whatever vehicle she occupied afforded; and sweet was the murmur of the waterfall, the music of his voice commended; and beautiful the beauty in the landscape, towards which a beam from his eye led the responsive light of hers.

Sometimes, on calm and lovely evenings, our little party would indulge in the quiet luxury of taking their seats in a pleasure boat, which formed a part of their present establishment; and sailing about for hours on the smooth and shining surface of the lake; while the stupendous mountains that rose around, like insuperable barriers against the world without, and the cloudless sky that canopied the whole, gave to feelings which were, in fact, those of the highest excitement, induced by the late relief from

wretchedness, a sense of repose, a semblance of stability, calculated to add to present enjoyment the too flattering belief, that it could last for ever.

Among scenes such as these, many happy months glided away; yet such was the delicate respect and mournful tenderness with which poor Willoughby was remembered, by both Alfred and Caroline, that the mention of love, in express terms, seemed to be, as by mutual consent, delayed. Alfred, indeed, would sometimes use, in speaking of futurity, the *we*—that promissory note of affianced love—and feel an indescribable thrill of delight in marking the conscious blush which his inadvertence was sure to excite on Caroline's fair cheek. Nor was the tender, the endearing thought, ever for a moment absent from his mind, that it was her secret attachment to him, the belief of his accusation, his terrible death, which had brought her, in the early morning of her days, to the dark portal of the tomb.

It was in moments of perfect calm, such as we have been describing, when either sailing on the smooth lake, or strolling with Mrs. Dorothea along its lovely margin, while the young people were occupied with each other, that Lady Arden would shudder involuntarily, when in imagination she contemplated, as from an immeasurable height, the frightful abyss of wretchedness into which she had been plunged so lately; and the horrors of which, from their stunning effect at the time, already seemed shadowy and indistinct, like the remembrance of some terrific dream!

"Yet such things have been," she would say, turning suddenly to Mrs. Dorothea, "and here I am, still in being! Would it not appear, that when the causes of suffering become extreme, confusion of spirit is sent in mercy to the succour of mortal weakness; as though such agony, as the soul can conceive when in full possession of its powers, were reserved to be the awful portion of the impenitent sinner after judgment! In our present state we know nothing perfectly—not even misery!"

---

## CHAPTER XXIV.

We have hitherto neglected to mention, that in the correspondence held with Lady Palliser, her ladyship's consent to the future union of her daughter with our hero was duly sought and obtained.

Indeed Lady Palliser considered, that Caroline's name had been so provokingly mixed up with that horrible business, as she always designated the late afflictions of the Arden family, that marrying her to the remaining brother was now absolutely indispensable, as well as one which would prove an excellent practical explanation of the whole affair, and save her the trouble of saying an immensity about it, beside the risk of being neither understood nor believed. Now, too, that the title and estates were Alfred's, she had no very particular objection to him: that is to say, he was just as good now as his brother had been—though neither were matches such as Caroline might have expected, had she not made an egregious fool of herself. As to her ladyship's silly anger with our hero, for daring to admire her daughter more than herself, it had long since been forgotten amid myriads of more brilliant conquests.

Previously, however, to the return to England of our travelling party, Lady Palliser died after a very short illness, having taken cold at some royal fête, which, when already far from well, she had imprudently quitted her bed to attend.

This new mourning made it nearly two years after the death of poor Willoughby before the marriage of Caroline and Alfred was celebrated: that of Madeline with Mr. Cameron, who through all the troubles of the family had been faithful, took place as soon as the mourning for her brother was over.

Prior, however, to these events, and prior also to the return from abroad of the Arden family, Miss Fips, all her flyers and streamers of black crape, nay, her very parasol black, reappeared upon the stage, calling herself Mrs. Arden, and declaring that she had been privately married to the late Geoffery Arden; of which alleged fact, however, she failed to produce any

satisfactory proof, save and except a son and heir, on whose behalf she claimed whatever property was left by the deceased.

This impudent and dishonest attempt of Miss Fips's not only failed in its object, but produced an effect as little expected as desired, either by herself or her father; eventually proving the cause of bringing to light circumstances and letters, sufficient to induce a strict examination into the nature of the services rendered by Mr. Fips to Geoffery Arden. While in the course of the investigation thus brought about, it was clearly proved, that the said Mr. Fips had been one of the parties engaged in a foul and nefarious conspiracy against the life and property of Sir Alfred Arden.

When Fips saw how the matter was likely to end, he, by way of precaution against the heavy fine which constitutes a part of the punishment for conspiracy, made over, by a fraudulent, antedated settlement, his whole property to his daughter, with a secret understanding, that she was not to avail herself of the gift during his life. On the expiration of his period of imprisonment, however, he found that Miss Fips had possessed herself of every shilling, married, and gone abroad. He was now to make his election between begging and going on the parish; for since his late misfortunes, the infirmities of age—a broken constitution, failing sight, and a trembling hand—had increased so rapidly upon him, that, to say nothing of want of character, he could not get employment even as a copying-clerk in any office. Of the two remaining alternatives, then, he was less ashamed to beg among strangers than to claim his right of parish at Arden, where he well knew the deserved abhorrence in which he was held. Thither, however, in the character of a vagrant, he was finally passed, without his own consent; and in the workhouse of Arden parish he died by his own hand, having been driven at last to cut his throat, in a paroxysm of despair and ineffectual rage, brought on by the ceaseless revilings, reproaches, and scoffings of his companions; many of whom, but too justly, laid their ruin at the door of his dishonesty and ruthless oppression.

Caroline and Alfred, after the cloudy morning of their life cleared up, enjoyed sunshine to its close. But this we need have scarcely mentioned; for all the ladies will say, "Who could avoid being happy with Alfred?" while the gentlemen will, no doubt, be disposed to pay a similar compliment to Caroline.

Lady Darlingford made an excellent, respectable, and respectful wife. The first season she appeared in London after her marriage, Lord Nelthorpe, her early lover, who by this time was separated from his lady, had the presumption to offer her some insidious compliments, indicative of continued admiration. They, however, as well as himself, were received with the scorn they merited.

Louisa and Henry Lyndsey soon began to experience the inconveniences of poverty; yet, when both happened to be in good humour, they could still think love better than riches. When, however, any thing ruffled the temper of either—and where there are difficulties (unless people are angels, or very good Christians), this will too often be the case—Louisa would think of, at least, if not regret, the sacrifices she had made; and Henry would recollect, with indignant resentment, that Louisa would, in all probability, have jilted him, but for the decided step he had taken.

These sentiments, after being at first only thought, might at last have been expressed; and so led, in time, to recrimination, and much unhappiness. Fortunately, however, an opportune act of liberality on the part of Alfred, by placing them in easy circumstances, before their dispositions became soured, prevented so miserable a result.

Madeline, it might be thought, had at least secured wealth. But in the course of years, she became a widow; and having in early life married an old man for his money, when no longer young herself, she married a young one for love, who married her for her money, he being one of the unhappy younger brother species, and therefore without a shilling of his own. Having also a taste for extravagance, acquired in childhood under the parental roof, and, moreover, a fashionable passion for gambling, he soon contrived to run through her splendid settlement, and at length found a dwelling for himself within the rules of the King's Bench.

Aunt Dorothea, who, though getting very old (somewhere about eighty-five or eighty-six), was still living at home, gave her favourite niece a home at Rosefield Cottage, which finally she willed to her with what little property else she possessed; but secured all in the hands of trustees, to preserve it from the extravagant husband.

Mr. Salter senior died, and Mr. Salter junior married; on which the Misses Salter found themselves constrained, by their limited circumstances, to betake themselves to a small lodging, where, if we may be excused the twofold contradiction in terms, they lived *together* in *single blessedness* the remainder of their days, as *miserable* as bad tempers, aggravated by discomfort and disappointment, could make them. They seemed to have but one object in life, which was mutually to thwart each other, and as they could afford but one sleeping apartment (the single dressing-glass of which, by-the-by, was a constant bone of contention), and one sitting-room, each of the smallest possible dimensions—they had neither means nor opportunity of flying from each other's ill-humour. The one, too, had a pet dog, while the other espoused the cause of the cat of the lodging-house; so that these respective representatives not only furnished a never-failing subject of quarrel, but whenever there happened to be a moment of truce between their principals, supplied themselves an underplot in excellent keeping with the leading drama. For, invariably on making their first appearance on their own peculiar stage, the rug before the fire, they saluted each other with a snarl, and a snap, a spit, and a claw in the face; after which, to do them justice, they did not keep *at it, at it*, like their betters, but lay down quietly, and went to sleep; puss in general persisting, notwithstanding a remonstrance or so from pug, on picking her steps in among his feet, and laying her back on his warm bosom; thus wisely making herself as comfortable as circumstances would permit.

Why is man called, by way of distinction, *a rational animal*? Man, who, of all creatures in creation knows the least how to be happy, while happiness is the end and aim of all.

Oh, happiness! our being's end and aim!  
Good, pleasure, ease, content, whate'er  
thy name:  
That something still which prompts th'  
eternal sigh,  
For which we bear to live, or dare to die;

---

Plant of celestial seed! if dropp'd below,  
Say in what mortal soil thou deign'st to  
grow?

---

Fix'd to no spot is happiness sincere;  
'Tis no where to be found, or every  
where.

Why, then, is happiness so rare? Because ere it can be possessed, every virtue must be ours and we must be wise withal, gentle, patient, lowly, meek; nor at the idle suggestions of vanity, immolate life's realities on the imaginary altars of *Pride*.

Know then this truth, enough for man to  
know,  
Virtue, alone, is happiness below.

**THE END.**

\*\*\* END OF THE PROJECT GUTENBERG EBOOK DILEMMAS OF  
PRIDE, (VOL 3 OF 3) \*\*\*

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

# THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at [www.gutenberg.org/license](http://www.gutenberg.org/license).

## **Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works**

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website ([www.gutenberg.org](http://www.gutenberg.org)), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

## 1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

## **Section 2. Information about the Mission of Project Gutenberg**

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at [www.gutenberg.org](http://www.gutenberg.org).

### **Section 3. Information about the Project Gutenberg Literary Archive Foundation**

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at [www.gutenberg.org/contact](http://www.gutenberg.org/contact)

### **Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation**

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

## **Section 5. General Information About Project Gutenberg electronic works**

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:  
[www.gutenberg.org](http://www.gutenberg.org).

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.